

TITLE 9 ROADS AND PUBLIC PLACES

9.04: REGULATION OF VEHICLES AND TRAFFIC

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9.04: REGULATION OF VEHICLES AND TRAFFIC

9.04.010: ADOPTION OF THE MODEL TRAFFIC CODE

1. Pursuant to Parts 1 and 2 of Article 16 of Title 31, and Part 4 of Article 15 of Title 30, C.R.S., there is hereby adopted by reference (Ordinance 004-2010) those portions of Articles I and II of the 2010 edition of the Model Traffic Code (as promulgated and published by the Colorado Department of Transportation, Safety and Traffic Engineering Branch, 4201 East Arkansas Avenue, EP700, Denver, Colorado 80222) addressing and relating to Class A and Class B traffic infractions. The subject matter of the Model Traffic Code relates primarily to comprehensive traffic control regulations for Pitkin County.

2. The Class A and Class B traffic infractions contained within the 2010 edition of the Model Traffic Code are identified in Ordinance 004-2010 Exhibit A (Table 9.1 of this code Section 9.04.070). (*§ 9.04.010 adopted ord. 004-2010*)

9.04.020: PURPOSE

The purpose of Ordinance 004-2010 and the “code” adopted therein (Title 9, Section 9.04, Roads and Public Places, Regulation of Vehicles and Traffic) is to provide a system of traffic regulations consistent with state law and generally conforming to similar regulations throughout the state and the nation.

The adopted code shall be so interpreted and construed as to effectuate its general purpose to conform with the State’s uniform system for the regulation of vehicles and traffic. Article and section headings of the adopted Model Traffic Code shall not be deemed to govern, limit, modify or in any matter affect the scope, meaning or extent of the provisions of any article or section thereof. (*§ 9.04.020 adopted ord. 004-2010*)

9.04.030: ADDITIONS/MODIFICATIONS

The adopted code is subject to the following additions or modifications:

a. The provisions of § 42-2-127 (5.5), C.R.S., as amended, are applicable to penalty assessment notices issued by the County.

b. If a court reduces a traffic offense, the points assessed for the reduced offense shall be those set forth in the point assessment schedule in §C.R.S., as amended.
(*§ 9.04.030 adopted ord. 004-2010*)

9.04.040: AUTHORITY TO REGULATE

The code shall apply to every street, alley, sidewalk, driveway, and park and to every other public way or public place or public parking area, either within or outside the corporate lines of Pitkin County, the use of which Pitkin County has jurisdiction or authority to regulate.
(*§ 9.04.040 adopted ord. 004-2010*)

9.04.050: VALIDITY

If any part or parts of Ordinance 004-2010 are for any reason held to be invalid, such decision shall not affect the validity of the remaining sections of such ordinance. The Board of County Commissioners hereby declares that it would have passed such ordinance and each part or parts thereof, irrespective of the fact that any one part or parts be declared invalid.

Ordinance 004-2010 shall be so interpreted and construed as to effectuate its general purpose to conform with the State's uniform system for the regulation of vehicles and traffic. Article and section headings of such ordinance and adopted Model Traffic Code shall not be deemed to govern, limit, modify or in any matter affect the scope, meaning or extent of the provisions of any article or section thereof. (§ 9.04.050 adopted ord. 004-2010)

9.04.060: VIOLATIONS

1. It is unlawful for any person to violate any of the provisions of this code. The penalty assessment procedure may be followed by the arresting officer for any such violation of such Ordinance.

2. Every person convicted of a violation of any provisions of this code commits a traffic infraction pursuant to § 30-15-402(1), C.R.S., as amended. (§ 9.04.060 adopted ord. 004-2010)

9.04.070: PENALTIES - FINES

The following penalties shall apply to violations of this code.

1. For its schedule of fines and penalties, Pitkin County incorporates the schedule of fines and penalties set forth in § 42-4-1701, C.R. S. (as that section may be amended), as those fines and penalties correspond to the sections of the Model Traffic Code (as described in this code Section 9.04.070 Table 9-1) for all cases wherein the alleged violator acknowledges guilt of liability, is found guilty by a court of competent jurisdiction, or had judgment entered against him or her. If the penalty assessment procedure is not used, and the alleged offender is found guilty, court costs and surcharges as provided for in § 30-15-401, C.R.S. may be assessed in addition to the fines and penalties set forth in § 42-4-1701, C.R.S.

2. Unless otherwise provided by law all fines and penalties, and the surcharges payable to the County thereon, for the violation of this section of the code, shall be paid into the treasury of Pitkin County. (§ 9.04.070 adopted ord. 004-2010)

Table 9-1 ARTICLES I AND II OF THE 2010 EDITION OF THE MODEL TRAFFIC CODE

Number	Class	Charge
2.105.5(2)	A	Unlawful Operation of a Vehicle between midnight and 0500 hours by a person under 17
2-101(2)	B	Drove Veh when Driver's Lic expired one year or less
2-101(5)	B	Drove Veh w/o valid Driver's License on Person
2-103	B	Drove Motorized Bicycle Without a Valid Driver's License
2-105(1)	A	Person Under 18 Transported Explosives or Haz Mat
2-105(1)	A	Person Under 18 Transported Children in School Bus
2-105(1)	A	Person Under 18 Not Qualified to Operate Commercial Vehicle
2-105.5(4)	A	Operator Under Age 17 Driving with More Passengers Than Seat Belts
2-106	A	Violated Restrictions on Temporary Instruction Permit

2-116(4)	A	Violated Restrictions on Driver's License
2-119(1)	B	Failed to Notify Authorities of Change of Name or Add within 30 days
2-134	B	Used Foreign Lic During suspension or Revocation of Colorado Driving Privileges
2-139	B	Permitted Unlicensed Minor to Drive Veh
2-140	B	Permitted Unlicensed Person to Drive Veh
2-141(1)	B	Rented or Loaned Veh to Unlicensed Person
2-141(2)	B	Failed to Inspect Lic of Renter
2-141(3)	B	Failed to Keep Rental Records
3-103(1)	B	Failed to Obtain Registration Within 60 Days of Purchase of Vehicle
3-113(6)	B	No Registration Card in Vehicle
3-113(7)	B	Failed to Notify Authorities within 30 Days of Change of Name or Address
3-114	B	Displayed Expired Number Plates
		1-29 days
		30-59 days
		60 days and over
3-116(2)	B	Manufacturer/Transporter/Dealer Failed to Display Number Plate as Required
3-116(4)(a)	B	Failed to Display or Misused Depot Tag
3-121(1)(a)	B	Failed to Display Valid Registration
3-121(1)(a)	B	Operated or Permitted Use of Unregistered Vehicle
3-121(1)(f)	B	Permitted/Used a Noncomm or Rec Veh to Transport Cargo or Passengers for Hire
3-121(1)©	B	Lent/Permitted or Unauthorized Use of Title/Registration Card/or Number Plate
3-126(1)	B	Failed to Notify Authorities Within 30 Days of Change of Vehicle Primary Color
3-133(1)(g)	B	Operated Commercial Vehicle while Registered as Collector Vehicle
3-202(1)	B	Vehicle Had No Number Plates Attached
3-202(1)	B	Vehicle Had Only One Number Plate Attached
3-202(2)(a)	B	Number Plate(s) Improperly Attached
3-202(2)(a)	B	Vehicle Number Plates Not Clearly Legible/Visible
3-202(2)(b)	A	Number Plates Obstructed by Distorted/Colored/Smoked/Tinted/Scratched/Dirty Device
3-203(3)(a)	B	Displayed Expired Temporary Permit
3-304(2)	B	Operated Vehicle In Excess of Declared Vehicle Weight
3-304(7)(b)	B	Transported Failed to Keep Written Record of Vehicles Transported
3-304(8)(a)	B	Transporter Misused In transit Plate
3-304(8)(b)	B	Improper Use of Manufacturer Plate
3-305(4)(a)	B	Used Farm Truck in Commercial Operation
3-311(1)	B	Rode Motorized Bicycle in an Improper Manner
3-311(1)	B	Motorized Bicycle Not Registered or Registered Decal Not Affixed
4-1001	A	Failed to Drive Vehicle on Right Side or Road or In Right Hand Lane as Required
4-1001(1)(b)	A	Failed to Yield Right of Way When Forced to Drive on Left Side of Road
4-1002	A	Failed to Yield One Half of Roadway to Oncoming Vehicle
4-1002	A	Failed to Yield On Half of the Roadway to Oncoming Vehicle
4-1003(1)(a)	A	Passed on left in Unsafe Manner
4-1003(1)(b)	A	Driver Failed to Give Way When Overtaken
4-1004	A	Passed on Right When Not Permitted or Not Safe
4-1005(1)	A	Passed on left When Not Clear to Traffic
4-1005(2)(a)	A	Passed on Hill or Curve When View Obstructed

9.04.0704-1005(2)(b)	A	Passed When Crossing or Within 100 Feet of Intersection or a Railroad Crossing
4-1005(2)©	A	Passed Within 100 Feet of Bridge or Tunnel or Viaduct When View Obstructed
4-1005(3)	A	Passed on Left When Prohibited by Signs and/or Markings
4-1006(1)	A	Drove Vehicle Wrong Way on One Way Roadway
4-1006(2)	A	Drove Vehicle Wrong Way Around Rotary Island
4-1007(1)(a)	A	Changed Lanes When Unsafe
4-1007(1)(a)	A	Failed to Drive in Single Lane (weaving)
4-1007(1)(b)	A	Drove Vehicle in Center Lane When Unnecessary or Prohibited
4-1007(1)(b)	A	Attempt to Pass or Passed on Should of Right Hand Traffic Lane
4-1007(1)(d)	A	Changed Lanes Where Prohibited by Official Traffic Control Devices
4-1007(1)©	A	Failed to Drive in Designated Lane
4-1008(1)	A	Following Too Closely
4-1008(2)	A	Unlawful Following by Vehicle Drawing Another Vehicle
4-1008(2)	A	Unlawful Following by Vehicle Drawing Another Vehicle (Following Too Closely)
4-1008(3)	A	Following Too Closely in Motorcade
4-1009(1)	A	Coasted Vehicle Down Grade With Gears in Neutral
4-1010	A	Failed to Drive as Required on Divided/Controlled Access Highway
4-1010	A	Vehicle Crossed Roadway Dividing Space or Median Barrier in an Unlawful Manner
4-1010(1)	A	Drove Vehicle on Wrong Side of Divided Highway
4-1012(3)(a)	A	Drove Unauthorized Vehicle in High Occupancy Vehicle Lane
4-1012(3)(b)	A	Drove Unauthorized Vehicle In High Occupancy Vehicle Lane Three or More Times
4-106	B	Drove Commercial Vehicle or Truck where Prohibited
4-106	B	Vehicle Exceeded Posted Weight Limitation
4-106(3)	B	Vehicle Exceeded Posted Weight Limitation
4-106(5)(a)(I)	B	Failed to Comply with Tire/Chain Restrictions
4-106(5)(a)(II)	B	Failed to Comply with Tire/Chain Restrictions that Resulted in Road Closure of Travel Lane
4-106(6)	B	Disobeyed Sign Closing Highway for Construction or Event
4-109(1)	B	Motorized Bicycle Rider Failed to Obey Provisions of Article 4
4-109(11)	B	Failed to Use Bicycle Path when Directed by Official Signs
4-109(11)	B	Motorized Bicycle Failed to use Bicycle path When Directed by Official Signs
4-109(12)	B	Parent or Guardian Knowingly Permitted Child to Violate Section 4-109
4-109(12)	B	Parent or Guardian Allowed Child to Violate 4-109
4-109(6.5)	A	Motorized Bicycle Operator/Passenger Under 18 Not Wearing an Approved Protective Helm
4-109(8)	B	Rode or Lead Animal on Wrong Side of Hwy
4-109(9)	B	Used Skis or Sled or Skates or Coaster or Toy Vehicle, Etc on Hwy
4-1101(1)	A	Speeding 1-4 MPH Over Prima Facie Limit
4-1101(1)	A	Speeding 5-9 MPH Over Prima Facie Limit
4-1101(1)	A	Speeding 10-19 MPH Over Prima Facie Limit
4-1101(1)	A	Speeding 20-24 MPH Over Prima Facie Limit
4-1101(1)	A	Speeding 1-4 MPH Over Posted Limit in Construction/School Zone
4-1101(1)	A	Speeding 5-9 MPH Over Prima Facie Limit in Construction/School Zone
4-1101(1)	A	Speeding 10-19 MPH Over Prima Facie Limit in Construction/School Zone
4-1101(1)	A	Speeding 20-24 MPH Over Prima Facie Limit in Construction/School Zone
4-1101(3)	A	Exceeded Safe Speed for Conditions (Indicate Actual and Safe Speed)
4-1103(1)	A	Impeded Normal Flow of Traffic

4-1104(1)	A	Exceeded Posted Safe Speed on Elevated Structure
4-116(1)(a)	A	Minor Driver Operated a Motor Vehicle with an Unauthorized Passenger (secondary violation)
4-116(1)(b)	A	Minor Driver Operated Motor Veh Between 12 Midnight and 0500 hrs (secondary violation)
4-1201	A	Improper Starting from Parked or Stopped Position
4-1201	A	Improper Starting From Parked Position
4-1202	B	Stopped or Parked or Left Standing Vehicle on Paved Portion of Highway
4-1204	B	Improper Stopping or Standing or Parking
4-1204	B	Improper Moving of Parked Vehicle
4-1205(1)	B	parked Vehicle More Than 12 Inches from Curb
4-1205(1)	B	Failed to park as Close as Practical to Edge of Shoulder
4-1205(2)	B	Parked Vehicle on Wrong Side of or Facing Wrong Way on Roadway
4-1206	B	Failed to Lock Ignition of or Remove Key from Parked Vehicle
4-1206	B	Parked Vehicle Without Setting Brakes
4-1206	B	Parked Vehicle on Grade Without Turning Wheels to Side of Curb
4-1207	B	Opened Door or Left Door Open Into Lane of Traffic When Not Safe and Interfered w/ Traffic
4-1208(6)	B	Improper Use of Disabled Parking Privileges When Not Disabled
4-1211(1)(a)	A	Backed Vehicle in Parking Area When Not Safe/ and Interfered with Traffic
4-1211(1)(b)	A	Backed Vehicle on Shoulder or Roadway or Controlled Access Highway
4-1301(2)(a.5)	A	Person < 21 Drove w/ BAC of .02 but less than .05 (1st Offense)
4-1301(2)(a.5)	A	Commercial driver < 21 Drove Comm Veh w/ BAC of .02 but less than .04
4-1305(2)(a)	A	Drank from or Possessed an Open Alcoholic Beverage Container in a Motor Vehicle
4-1403	A	Following Too Closely Behind Fire Apparatus
4-1404	B	Drove over Fire Hose
4-1405	B	Person Rode In Trailer
4-1406(1)(a)	B	Left or Deposited or Threw Foreign Matter on Highway
4-1406(2)	B	Failed to Remove Lighted or Burning Matter Left/Deposited/Thrown on Highway
4-1406(3)	B	Removed Wrecked or Damaged Veh From Highway Without Removing Injurious Substance
4-1406(4)	B	Excavated on Highway Without Authorization
4-1406(4)	B	Constructed on Highway Without Authorization
4-1406(5)(b)	B	Left, Deposited, or Threw Human Waste Container on Highway
4-1407(1)	B	Spilled Load on Highway or Failed to Cover Load or No Flaps When Required
4-1407(2.4)(a)	B	Vehicle Transporting Trash or Recyclables Failed to Cover or Properly Secure Load
4-1407(3)(b)	A	Spilled Load From Car or Pick up Truck on Highway
4-1407.5	B	Truck Tractor or Trailer did not have Splash Guards as Required
4-1408	B	Operated Motor Vehicle in Recreation Area or District Where Prohibited
4-1411	B	Drove While Wearing Earphones
4-1414(2)(a)	B	Unlawful Use of Dyed Diesel Fuel (First Offense)
4-1414(2)(a)	B	Unlawful Use of Dyed Diesel Fuel (Second Offense)
4-1414(2)(a)	B	Unlawful Use of Dyed Diesel Fuel (Third or Subsequent Offense)
4-1502	A	Improper Riding on Motorcycle
4-1502(4.5)(a)	A	Motorcycle Operator or Passenger Under 18 Not Wearing an Approved Protective Helmut
4-1503	A	Illegal Operation of Motorcycle on Laned Roads
4-1504	A	Person on Motorcycle Clung to Another Vehicle
4-1919(1)	A	Unproper Turn or Turned Where Prohibited Across Median or Divided Highway
4-201(1)	A	Number of Persons in Front Seat of Vehicle Obstructed Vision

4-201(1)	A	Number of Persons in Front Seat of Vehicle Interfered with Driver	
4-201(2)	A	Driver of Vehicle Allowed Passenger to Ride in an Unsafe Manner	
4-201(3)	A	Television Visible to Vehicle Operator	
4-201(4)	A	Driver's Vision Obstructed Through Required Glass	
4-201(5)	A	Passenger in Vehicle Interfered With/Obstructed Vision of Driver	
4-201(6)	A	Person Hung On/Attached Himself to the Outside of Vehicle	
4-202	A	Operated Vehicle with Defective or Missing Headlamps	
4-202(1)	A	Drove a Defective or Unsafe Veh	
4-202(4)(c)	A	Moved Exempt Construction Equipment on Hwy When Vision Less than 500 Feet	
4-202(4)(e)	A	Owner or Identification Plate Failed to remove plate and forward to DOR	
4-202(4)(f)	A	Failed to Report Lost/Stolen/Damaged Identification Plate to DOR	
4-204(1)	A	Failed to Display Lamps When Required	
4-205(1)	B	Motor Vehicle Not Equipped With Head Lamps as Required	
4-205(2)	B	Motorcycle Not Equipped with Headlamps as Required	
4-205(3)	B	Height of Headlamp Failed to Meet Requirements	
4-206(1)	B	Vehicle Not Equipped With Tail Lamps as Required	
4-206(2)	B	Height of Tail Lamp Failed to Meet Requirements	
4-206(3)	B	Vehicle Had No or Defective License Plate Lights	
4-206(4)	B	Vehicle Failed to Have Reflector as Required	
4-206(5)	B	1958 or Newer Vehicle Failed to Have Two Reflectors as Required	
4-206(6)	B	Height of Reflector Failed to Meet Requirements	
4-207	B	Vehicle Not Equipped with Clearance/Side marker or Lamps/Reflectors as Required	
4-208	B	Vehicle Had Defective or No Stop Lights	
4-208	B	Vehicle Not Equipped with Turn Signals as Required	
4-209	A	Improper or No Red Flag or Light on Projecting Load	
4-210	B	Failed to Display Required Lights When Parked	
4-211	B	Farm Tractor/Farm Equipment/Animal Drawn Vehicle Not Equipped With Lights/Reflectors	
4-212	B	Spot Lamps/Fog Lamps/Auxiliary Passing Lamps or Driving Lamps Failed to meet Rqmnt	
4-213(1)	A	Insufficient Audible or Visual Signal on Emergency Vehicle	
4-213(4)	A	Unauthorized or Improper Use of Green Light on Motor or Emergency Veh	
4-214	B	Lamps on Service Vehicle Failed to Meet Requirements (Not Yellow)	
4-214	B	Failed to Display Lamps on Service Vehicle as Required	
4-215	B	Signal Lamps/Devices Failed to Meet Requirements	
4-216	B	Vehicle Had No Upper-Lower Beam Switch or Indicator	
4-217(1)	A	Improper Headlight Distribution	
4-217(1)(a)	A	Failed to Dim Lights When Approaching an Oncoming Vehicle	
4-217(1)(b)	A	Failed to Dim Lights When Following Another Vehicle	
4-218	B	Single Beam Head Lamps Failed to Meet Requirements	
4-219	B	Displayed More Than Four Lamps When Prohibited	
4-220	B	Motorized Bicycle Did Not Have Lamp/Reflector/Audible Signal/Brake as Required	
4-220(3)(a)	B	Motor Vehicle Had High Intensity Light Improperly Directed	
4-220(6)	B	Used, Attached, or Operated an Unapproved Lamp or Lighting Device Upon a Motor Vehicle	
4-221(2)	B	Bicycle not Equipped With Front Lamp Visible 500 Feet to Front	t Lamp Visible 500 Feet to Front
4-221(3)	B	Bicycle not Equipped With Red Reflector Visible 600 Feet to Rear	
4-221(4)	B	Bicycle not Equipped with Side Reflective Material or Lamps	

4-222(1)	B	Improper Auxiliary Signal Lamps or Aud Signal on Volunteer Firefighter or Ambi Attend Veh	
4-222(1)	B	Misuse of Auxiliary Signal Lamps or Aud Signal on Volunteer Firefighter or Ambi Attend Veh	
4-223(1)(b)	A	Motorcycle/Motorized Bicycle/Bicycle with Motor Not Equipped with One Brake	
4-223(1)(d)	A	Motor Veh/Trailer/Semi Trailer Did Not Have Service Brake as Required	
4-223(1)©	A	Trailer/Semi trailer Did not Have Breakaway Brakes as Required	
4-223(2)	A	Performance of Service/Hand Brake Did Not Meet Requirements	
4-224	B	Vehicle Had No or Defective Horn	
4-224	B	Operated Veh With Unauthorized Audible Signal	
4-224	B	Unauthorized Use of Siren or Whistle Upon a Motorized Bicycle	
4-225	B	Vehicle Had Defective/Improper/No Mufflers	
4-225(1.5)	B	No or Inadequate Muffler on a Vehicle with a Jake Brake	
4-226	B	Vehicle Not Have Rearview Mirror(s)	
4-226	B	Rearview Mirror Did not Permit Minimum 200 Foot Vision	
4-226(2)	B	Load Obstructed View to Rear -- No Mirrors	
4-227-(1)	B	Material on Windshield or Front Side Windows Presented Nontransparent/Metallic/Mirrored	
4-227(2)	B	Vehicle Had No or Defective Windshield Wipers	
4-228(1)	A	Solid Rubber Tire Failed to Be at Least One Inch Thick	
4-228(3)	A	Tire had Block/Flange/Cleat or Spike Protruding from Rubber	e/Cleat/Spike Protruding from Rubber
4-228(5)	A	Operated a Vehicle with Improper or Unsafe Tires	
4-228(6)	A	Operated a Vehicle on Highway with Tires Not Designed for Highway Use	
4-229(4)	B	Vehicle Not Equipped with Front Windshield/Safety Glass in Front Windshield	
4-230	B	Vehicle did Not Have Emergency Reflective Triangles as Required	
4-230	B	Failed to Use Warning Signal Flashers/Emergency Reflective Triangles as Required	
4-231	B	Drove on Highway with Park Lights When Headlights Required	
4-232(1)	A	Motorcycle Operator or Passenger Had No Protective Eye Wear as Required	
4-232(1)	B	Motor-Driven Cycle Not Equipped With head lamp as Required	
4-232(1)	A	Motor Driven Cycle Operator or Passenger Had No Protective Eye Wear as Required	
4-232(3)	A	Motorcycle Not Equipped With Passenger Footrests	
4-232(3)	A	Motor-Driven Cycle Not Equipped With Passenger Footrests	
4-234(1)	B	Failed to Display Slow Moving Vehicle Emblem	
4-234(3)	B	Misused Slow Moving Vehicle Emblem	
4-236(2)(a)(I)	B	Failed to Provide or Properly Use Rear Facing Child Restraint System (< 1 yr old/less than 20lb	
4-236(2)(a)(I)	B	Failed to Provide or Properly Use Forward Facing CRS (1 - 3 yrs/More than 20 lbs/less than 40	
4-236(2)(b)(II)	B	Failed to Provide or Properly Use Seatbelt (6-17 years or More Than 55 " tall)	
4-236(2)(b)(I)	B	Failed to Provide or Properly Use Approved CRS (4-5 years/Less Than 55 " tall	
4-237(2)	B	Drove Vehicle When Safety Belt Not in Use	
4-237(2)	B	Drove Vehicle When Front Seat Passenger Not Secured by Safety Belt	
4-239	A	Misuse of Mobile Communication Devices	
4-314(1)	A	Deactivated or Disconnected a Pollution Control Device	
4-314(2)	A	Operated a Veh with a Deactivated or Disconnected Pollution Control System	
4-502	B	Width of Vehicle or Load Exceeded 8 Foot 6 Inches	
4-502	B	Width of Bus Exceeded 8 Foot 6 Inches	
4-502(2)(a)	B	Load of Loose Hay Exceeded 12 Foot Width	
4-502(2)(b)	B	Load of Small Rectangular Hay Bales on a Single Vehicle Exceeded 10 Foot 6 Inches in Width	
4-502(3)	B	Vehicle Had Chains or Rope or Wire Swinging or Dragging or Projecting	

4-503	B	Load Projected Beyond Fender of Left Side of Passenger Vehicle
4-503	B	Load Projected Beyond Fender of Right Side of Passenger Vehicle
4-504(1)	B	Height of Vehicle Exceeded 13 Feet
4-504(1)	B	Height of Vehicle Exceeded 14 Feet 6 inches on Designated Highway
4-504(2)	B	Single Vehicle Exceeded 45 Feet in Length
4-504(3)	B	Bus Exceeded 60 Feet in Length
4-504(4)	B	Combination of Vehicles Exceeded Four Units or 70 Feet in Length
4-504(4.5)	B	Auto or Boat Transported Exceeded four Units or 75 Feet
4-504(5)	B	Projecting Load on Vehicle Obstructed Driver's Vision
4-504(5)	B	Load Projected Beyond Grill Assembly or Front Wheels
4-504(6)	B	Rear Projection of Load Exceeded 10 Feet
4-505	B	Operated Longer Vehicle Combination Where Prohibited
4-506(1)	B	Unlawful Drawbar
4-506(2)	B	Failed to Use White Flag on Tow Chain, Cable, or Rope
4-506(3)	B	Failed to Use Safety Chain or Cable on Towed Vehicle
4-512	A	Damaged Highway or Highway Structure
4-603	A	Failed to Observe or Disregarded Traffic Control Device
4-603	A	Made Turn Where Prohibited by Traffic Control Device
4-604	A	Pedestrian Disregarded or Failed to Obey Traffic Control Signal
4-604	A	Failed to Yield Right of Way on Right Turn After Stop at Red Light
4-604	A	Failed to Obey Lane Use Control Signal
4-604	A	Failed to Obey Traffic Control Signal
4-604	A	Failed to Stop for Traffic Control Signal at Place Required
4-604	A	Made Right or Left Turn on Red Light When Prohibited by Sign
4-605	A	Failed to Obey Flashing Red or Yellow Signal Light as Required
4-606	A	Displayed Unauthorized Sign or Signal or Marking or Device
4-607(1)(a)	B	Attempted to Removed/Alter/Deface/Knock Down Traffic Control Sign or Device
4-607(1)(b)	B	Unlawfully Possessed or Sold Electronic Device Designed to Affect a Traffic Control Device
4-607(2)(a)	A	Interfered With Traffic Control Device By Using Electronic Device
4-608(1)	A	Failed to Use Turn Signals
4-608(2)	A	Vehicle Not Equipped with Turn Signals as Required
4-609	A	Gave Improper Hand Signal
4-610	B	Displayed Unauthorized Insignia
4-612	A	Failed to Proceed With Caution or As Required at Inoperative or Malfunctioning Signal
4-701	A	Failed to Yield Right of Way as Required at Uncontrolled Intersection
4-702	A	Failed to Yield Right of Way When Turning Left in Front of Approaching Traffic
4-703	A	Disregarded or Failed to Stop as Required at Stop Sign at Through Highway
4-703(3)	A	Failed to Yield Right of Way When Proceeding from Stop Sign
4-703(4)	A	Failed to Yield at Yield Intersection
4-704	A	Failed to Yield Right of Way Upon Entering Hwy (any place other than from another roadway
4-705	A	Failed to Yield Right of Way to Emergency Vehicle
4-706	A	Disregarded Railroad Signal/Crossing Gate/Barricade/Flagman
4-706(1)	A	Disregarded Stop Sign at Railroad Crossing
4-707	A	School Bus or Commercial Driver Failed to Stop at RR Crossing When Required
4-707(1)	A	School Bus or Commercial Driver Failed to Stop at RR Crossing When Required

4-708	B	Unlawful Moving of Heavy Equipment Across Railroad Grade Crossing
4-709	A	Driver Stopped Vehicle in Intersection/Marked Crosswalk/Railroad Crossing When Prohib
4-710(1)	A	Failed to Yield Right of Way to Pedestrian Upon Emerging From Alley or Driveway or Bldg
4-710(2)	A	Failed to Yield Right of Way to Pedestrian Upon Entering Alley or Driveway or Bldg
4-710(3)	A	Drove on Sidewalk
4-711(1)	A	Drove Vehicle Improperly On Mountain Highway
4-711(2)	A	Failed to Yield Right of Way to Ascending Vehicle on Narrow Mountain Roadway
4-712(1)	A	Failed to Yield Right of Way to Authorized Veh or Pedestrian in Highway Work Area
4-712(2)	A	Failed to Yield Right of Way to Authorized Service Vehicle/Pedestrian in Highway Work Area
4-712(3)	A	Disregarded Instructions or Signals of Authorized Flag Person in Highway Work Area
4-801	B	Pedestrian Disregarded Traffic Control Device
4-802(1)	A	Failed to Yield Right of Way to Pedestrian in Crosswalk
4-802(3)	A	Pedestrian Suddenly Walked or Ran or Rode Bicycle into Path of Motor Vehicle
4-802(4)	A	Passed Vehicle Stopped for Pedestrian in Marked or Unmarked Crosswalk
4-802(5)	A	Failed to Yield Right of Way to Pedestrian at Steady Walk Signal
4-803	B	Pedestrian Failed to Yield Right of Way to Vehicle
4-803	B	Pedestrian Failed to Cross Roadway as Required
4-805(1)	B	Pedestrian or Animal Rider Failed to Walk/Ride Along/Upon Roadway as Required
4-805(2)	B	Pedestrian Solicited Rides in Roadway
4-805(3)	B	Pedestrian on Hwy Under the Influence of Etoh/Controlled Substance
4-805(3)	B	Pedestrian on Hwy Under the Influence of Etoh/Controlled Substance
4-805(4)	B	Animal Rider on Hwy Under Influence of Etoh/Controlled Substance
4-805(4)	B	Animal Rider on Hwy Under Influence of Etoh/Controlled Substance
4-805(7)	B	Vehicle Endangered or Impeded Traffic to Pick Up Pedestrian
4-805(8)	B	Pedestrian/Animal Rider Failed to Yield to Emergency Vehicle
4-806	A	Drove Vehicle Through or Within Pedestrian Safety Zone
4-806	A	Drove Vehicle Through Safety Zone
4-807	A	Driver Failed to Exercise Due Care for Pedestrian
4-808	A	Pedestrian Failed to yield Right of Way to Disabled Person
4-808	A	Driver Failed to Yield Right of Way to Disabled Person
4-901(1)(a)	A	Made Right Turn From Wrong Position or Lane
4-901(1)(b)	A	Made left Turn From Wrong Position or Lane
4-901(1)©	A	Made Improper Left Turn at Multi turn intersection
4-901(2)	A	Failed to Turn as Required by Traffic Control Device
4-901(2)	A	Failed to Turn From Turn Only Lane
4-902(1)	A	Made U Turn on Hill or Curve
4-902(2)	A	Made Unsafe U Turn at Intersection
4-902(3)	A	Made U Turn Where Prohibited
4-903	A	Failed to Signal or Gave Improper Signal for Turn/Stop/Sudden Decrease in Speed
Improper Use of Flashing Turn Signal (<i>§ 9.04.070 adopted ord. 004-2010</i>)		

TITLE 9: ROADS AND PUBLIC PLACES

9.08: PITKIN COUNTY ADDRESS SYSTEM

9.08.010: ADOPTION OF THE PITKIN COUNTY ADDRESS CODE

Pursuant to Article II Section 2.8.1.1 of the Home Rule Charter, and 30-35-301 C.R.S. the Board of County Commissioners of Pitkin County, Colorado, adopted Ordinance No. 007-2016 setting standards for the naming of roadways; assigning addresses; providing a detailed explanation of steps involved in naming roadways; and establish a standardized system for naming roadways and assigning addresses.

9.08.020: PURPOSE

The purpose of this Ordinance and the “code” adopted therein (Title 9, Section 9.08, Pitkin County Address System) is to provide a system of address standards that shall be used to name roadways and assign addresses to properties along such roadways.

Roadways, non-commercial and commercial addressable structures shall be identified by a consistent system that provides for sequenced or patterned numbering and non-duplicated naming. The intent is to assign addresses using a system, which is predictable and understandable, while accomplishing the following objectives:

- A. Provide logic and order in the assigning of roadway names and addresses;
- B. Guide staff in ensuring consistency in addresses;
- C. Ensure that emergency services are able to locate and respond quickly;
- D. Ensure that visitors, delivery and other services can locate an address quickly.

The county recognizes that there may be unique situations that require modification to these guidelines, but in no instance shall an address scheme be accepted that compromises the safety of the public, relative to timely and efficient response to the location by emergency services personnel.

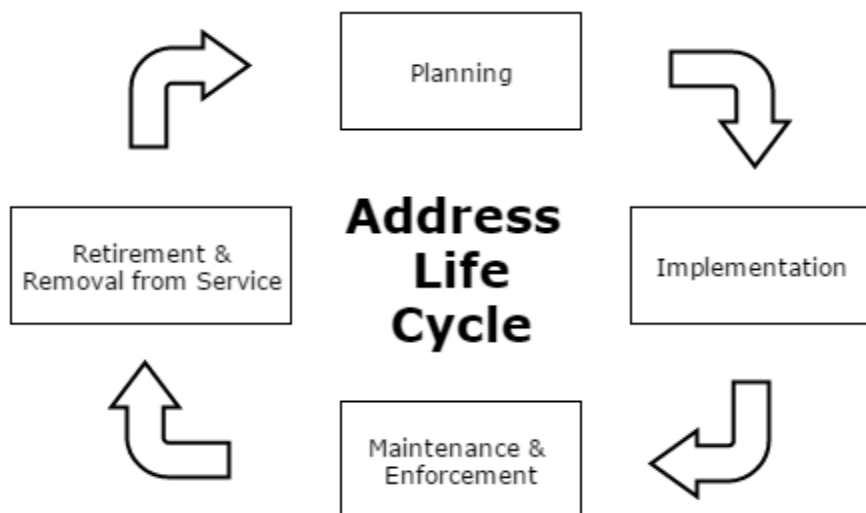
9.08.030: ADMINISTRATION

The Pitkin County Address system shall be administered pursuant to the provisions of this code, by the Pitkin County GIS Department.

9.08.040: DEFINITION OF AN ADDRESS AND THE ADDRESS LIFE CYCLE

An Address shall be defined as an objectively applied and dynamic specification to a location by reference to a thoroughfare or landmark.

Address Numerals may and shall change as necessary to demarcate an addressable location along the ever evolving thoroughfares used to reach such location. Similar to other logically and objectively assigned identifiers (such as license plates and telephone numbers) addresses may be very long lived. However, they are not a permanently assigned identification (like social security numbers) and may be issued, updated, corrected, retired, or re-instated as required by Pitkin County to create, maintain, or improve its address system.



9.08.050: ADDRESS NAMING AND ASSIGNMENT STANDARDS

The following standards for address naming and address assignment shall apply:

- A. New Construction and Subdivision Review Procedures: Building permit applications for new construction and Subdivision preliminary plans are submitted to Pitkin County Community Development and to the Address Coordinator for review.
- B. Incorrect Addresses: If an incorrect address is discovered, the Pitkin County Address Coordinator will contact the owner to correct the address. A notification will be sent to the owner listing the corrected address. It is the responsibility of property owners to notify tenants of said property of any address changes.
- C. Address Dissemination: All addresses, whether they are new, changed or corrected, shall be disseminated by the Pitkin County Address Coordinator to all necessary government departments.

9.08.060: ROAD NAMING STANDARDS

The main objective is to provide distinct roadway names to minimize road name confusion. Names that are short, easy to read, and relate to local history are encouraged.

All roads that serve three (3) or more addressable structures shall be named regardless of whether the roadway ownership is public or private. A “Road” refers to any highway, road, street, avenue, lane, private way or similar paved, gravel, or dirt thoroughfare. A road name assigned by Pitkin County shall not constitute or imply acceptance of the road as a public way.

- A. County Approval: Pitkin County approval is required for naming and/or renaming of all private and public roadways in Pitkin County and shall be completed in a timeframe set forth in the addressing process.
- B. Criteria: Roadway names may be based on one or more of the following criteria:

- Local “flavor” or influence
- Historical uses, places, equipment or structures
- Historical persons/events
- Political persons/events
- Physical features
- Local flora or fauna

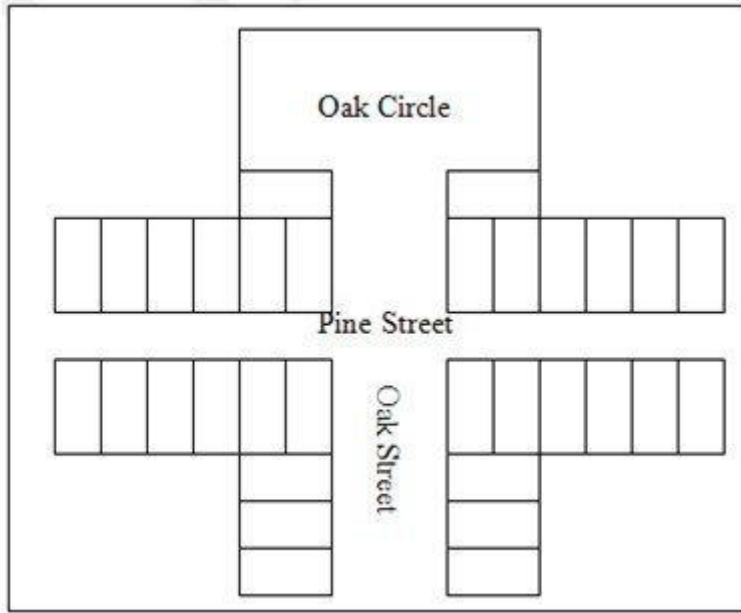
- Following the theme of the subdivision
- Colorado history/relevance related themes
- Other reasonable criteria that meet the specifications of this ~~manual~~ section.

C. Plats submitted to the Pitkin County Community Development Department must include a list of requested street names. These names must be approved by the Address Coordinator before the subdivision plat can be approved by Community Development.

D. Name/Address Duplication: Roadway names shall not be duplicated in Pitkin County. If proposed roadway names already exist within Pitkin County or are adjacent to the Pitkin County Regional Emergency Dispatch Center (PCREDC) Public Safety Answering Point boundary zip codes (see attached PSAP map), regardless of whether or not they are the same name as the plat name, they will be denied as duplicates. A road that has the same name as another road but a different suffix or prefix is considered to be a duplicate name. Similar-sounding names, (ie, Ledge and Edge) are considered to be duplications. Names that refer to, are identical or similar to well-known places or landmarks (including, but not limited to: park, ski run or lift, bus stop, trail or business names), may be denied as duplicates. Differentiating roadway names by suffix, such as street or avenue is generally prohibited; the exceptions are roadways that are directly accessible from the roadway having the same name with a different suffix. (See Figure 1) Example: Oak Circle accessible from Oak Street.

Figure 1. Use of Drive, Street and Circle thoroughfare designations.

See below:



E. Use of Individuals' Names as a Roadway Name: Use of individual's names as roadway names is discouraged and may be prohibited.

F. Use of Special Characters: Roadway names will not contain hyphens, slashes, apostrophes, or other special characters. Roadway names may only consist of alphabetic symbols A-Z and blank spaces. Single, individual letters/initials may not be used as roadway names. Roadway names will not consist of numbers, unless spelled out.

G. Use of Unnecessary Affixes: Affixes, such as terms that indicate direction, (Northcrest, Westridge) are not allowed.

H. Use of Cardinal Directions: Cardinal directions, (North, South, East, and West) can be added by the Pitkin County Address Coordinator.

I. Long Roadway Names: The use of unreasonably long roadway names is prohibited. Pitkin County follows the National Emergency Number Association (NENA) recommended format, which sets the following limitations: Roadway name – 40 characters.

J. Multiple Thoroughfare Name: Roadways generally have one name for their entire length. However, several names resulting from a 90 degree turn that proceeds to another 90-degree turn are an exception to this rule. (See Figure 2)

K. Broken Roadways Sharing the Same Road Name: Different roadway names should be given to roadways which are broken or separated by an area of land, a park, a railroad track, a waterway or other such obstruction which make it unlikely for the roadways to be connected in the future. (See Figure 3)

Figure 2.

More than one name is given to a roadway when it jogs sharply for a substantial distance

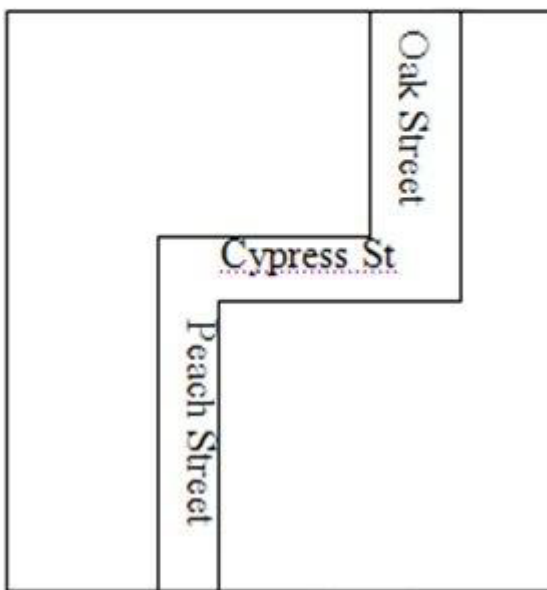
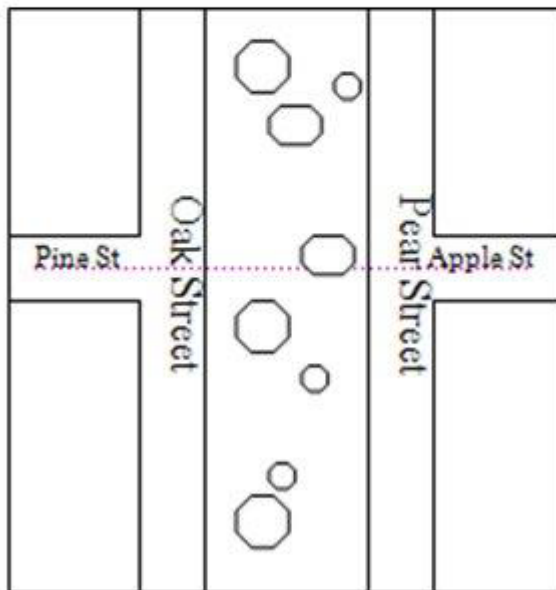


Figure 3.

A roadway separated by a park is assigned two different names.



9.08.070: ROADWAY DESIGNATIONS GUIDELINE (see Section 9.08.130 for definitions)

A. Boulevard:

- A roadway with a median reflecting the boulevard character implied in the name. (Same definition applies to parkways.)
- A major thoroughfare running in a diagonal direction, rather than east-west or north-south. It must connect at least two sections and acts as a collector.
- Unusually wide thoroughfares in residential sections with shade trees or shrubbery in the center median, and the name can even be used with numbered thoroughfares. (Same definition applies for parkways.)

- A roadway divided by landscaped center island and generally designated by name, not a number used as a name.

B. Courts:

- Indicate the direction and to some extent the location of minor dead-end roadway lying between roadways.
- Reduces rights-of-way branching from places or ways.
- Curving roadways of less than 1,000 feet. An uninterrupted street ending in a cul-de-sac and generally designated by a name.
- Secondary roadways connecting with each other.

C. Drives:

- Winding roadways.
- Curving roadways longer than 1,000 feet
- Diagonal, curvilinear, or other types of roadways not previously mentioned.
- Roadways that meander about and continue through to other rights-of-ways.
- Secondary facilities that connect with each other.
- A curvilinear roadway of more than 1,000 feet in length, generally designated by a name.

D. Highways:

- Designated state or federal highways.
U.S. routes are designated as highways.

E. Lanes:

- Reduces rights-of-way branching from places or ways.
- Curving roadways of less than 1,000 feet. An uninterrupted roadway ending in a cul-de-sac and generally designated by a name.
- Secondary roadways connecting with each other.

F. Loops (See Figure 4):

- Loops can be short drives that begin and end on the same street.
- Circular or semicircular roads.

G. Circles (See Figure 5):

- A secondary roadway that begins and circles back to terminate on the same roadway.
- Circles, loop streets.
- A roadway forming a closed loop, generally designated by a name.

Figure 4.

Example of a roadway that might have a loop designation.

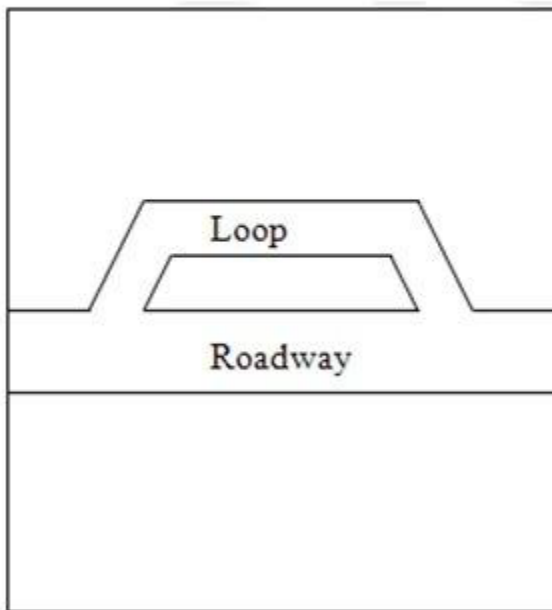
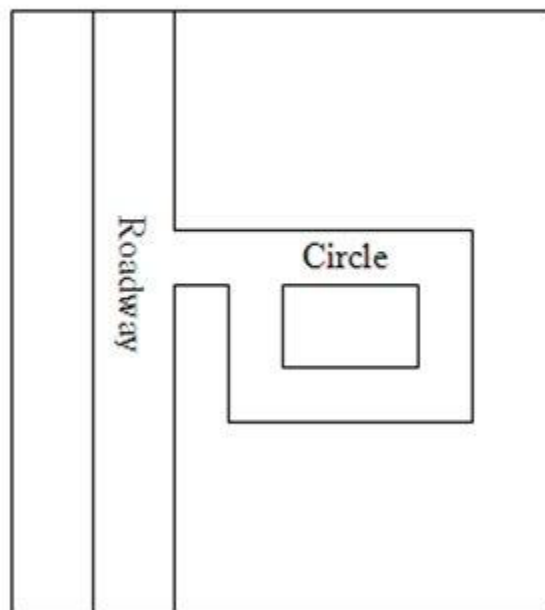


Figure 5.

Example of a roadway that might have a circle designation.



H. Parkway (Also see Boulevard)

- A special route or park drive, generally designated by a name.

I. Path:

- A minor local roadway running in a diagonal direction, usually between a north-south "Avenue" and an east-west roadway; a path may also be a diagonal connector between offset portions of a north-south or east-west collector thoroughfare.

J. Place:

- A cul-de-sac or permanent dead-end roadway
- Dead-end rights-of-way under 1,000 feet
- Roadways less than 1,000 feet in length
- Permanently closed dead end roadways

K. Roads:

- Limited roadways that are frequently used, have heavy traffic volume, and run in any direction.
- Secondary facilities connecting with a U.S. or state primary highway.
- Diagonals longer than 12,000 feet and designated by a name.
- Diagonal roadways.
- Roadways, Streets and Avenues.
- Streets are roads that generally run in an east-west direction, avenues are roads that basically have a north-south orientation.
- Avenue- a roadway running principally in a north-south direction and usually terminating at an east-west roadway. Street – a roadway running principally in a east-west direction and usually terminating at a north-south avenue.

L. Trails:

- A diagonal local roadway serving as a collector for one or more roadways.
- All curvilinear roadways.

M. Ways:

- A minor roadway that changes directions or begins and ends on the same roadways.
- Diagonal roadways less than 1,000 feet in length.

9.08.080: ADDRESS/NUMBERING SYSTEMS

Pitkin County uses the national Uniform Measurement System referred to as the *Century System* to assign roadway numerical addresses. Address numbers must be whole numbers, and shall conform to the established standards as outlined below:

A. Century System: A nationally recognized uniform system of measurement in which numbers are based on fractions of a mile starting from the origin of a roadway to the start of a property's driveway. The intent is that anyone in a vehicle could find their destination based from an odometer reading.

B. Reading the Century System: The numbering system reads from the right to the left as follows:

- The far right number indicates if it will be on the odd or even side of the street.
- The second number from the right indicates 1/100th of a mile.
- The third number from the right indicates 1/10th of a mile.
- The fourth number from the right indicates the single digit number of miles.
- The fifth number from the right indicates the miles in double digits.

Example 1: If a property is 31.85 miles from the origin of the roadway said address would be in the range of 31850-31859. This address number would then further be defined by its designation of being on the odd or even side of the roadway.

Example 2: An address of 232 would be .23 miles from the origin of the roadway and on the even side of the roadway.

C. Block Numbering System: An urban centric addressing system where address numbers are based on a uniform street grid. Only areas where the Block Numbering System is currently in use may have new address assignments and routine address maintenance based upon the guidelines of this system. Hundred block ranges should not go beyond an intersection. The numbers should be within the same hundred block from one intersection to the next.

D. Parity: All roadways must have an even/odd parity which remains consistent and logical along its entire length, with all addresses along one side being even and all address odd along the other side as one travels along the roadway. Roadways which do not have a consistent parity shall be reassigned as necessary for public safety. New roadways shall be assigned with Even Addresses along the North and East sides of the roadway and Odd Addresses along the South and West sides of the roadway whenever possible. Pitkin County may assign addresses using the simplified Left-Even and Right-Odd methodology on new or existing roadways if it shall be deemed preferable to do so by the Address Coordinator.

E. Addressable Structures: Residences, dwelling units, commercial, institutional, or industrial occupancies which are typically occupied by humans will be assigned addresses under this section. Occupied shall be defined as any building with facilities designed for: sleeping, eating, education, or employment of humans. Any structure with a standalone, permitted, or regularly inspected Fire Protection System and/or alarm system is addressable.

Other sites or structures may be addressed upon request where the address may be helpful in emergencies, such as electrical substations, water gates, service boxes, barns, outbuildings, pumping or compressor sites, etc. Such sites may be assigned addresses upon submission of a request by the owner, Public Safety Personnel, utility providers, etc. Pitkin County shall have the discretion to determine the necessity to address such locations.

F. Access Routes & Residential Corner Lots: Corner Lots and properties with special access considerations will be addressed on a case by case basis with input from the Fire District which the property is situated in. Structures shall be addressed from the roadway with the frontage for their primary entrance. If the primary access for fire apparatus will utilize a Fire Department Access Road or a driveway, then the structure(s) will be addressed from where that access road or driveway meets the named roadway, regardless of primary entrance or street orientation.

G. Shared Driveways: If three or more addressable structures are accessed by a single driveway, the driveway shall be renamed as a street. Multiple homes on a single drive shall each be assigned an address that indicates the distance from the street origin to the home. Barns, sheds or other outbuildings are not normally given separate addresses from the residence unless they must be accessed by a separate roadway.

H. Townhome Complexes: Townhome buildings shall be provided a single street address based on the location of the driveway that accesses the building. Each unit within is further identified by a number, increasing sequentially from the unit arrived at first on the driveway to the unit arrived at last along the driveway.

Example: 620 Everywhere Dr, Unit 12 in this instance the townhome would be located .62 miles from the beginning of Everywhere Dr. on the even side of the roadway, and the unit would be the twelfth one passed as one traveled from the beginning to the end of the driveway.

Separate numbered addresses may be assigned to townhome units if the townhome building parallels the roadway or each unit has its own driveway or a designated parking area off the roadway immediately in front of the unit.

I. Condominium Buildings: Condominium buildings shall be provided a single roadway address based on the location of the driveway or entrance that accesses the building. Like townhomes, the roadway address number is then followed by a unit number. In condominium buildings, unit numbers typically indicate a floor level, with 100 series numbers indicating the first floor, 200 series the second, and so on.

J. Duplexes: Duplexes shall be assigned two separate numbers. A distinction between units using North/South or A/B is allowed.

K. Mobile Home Parks: Mobile Home Parks shall be addressed in a consistent and logical manner. Address will be assigned in the same manner as any other street, subdivision or neighborhood with special attention to parity and access.

L. Institutional and Educational Campuses: Addressing will be assigned and correctly signed so that Public Safety Personnel will be able to immediately identify any building or target hazard on a campus. With the higher risks associated with these properties, address, unit numbering, or any other organizational scheme will be re-assigned and corrected as soon as possible if it may be confusing, unclear, or difficult to interpret.

M. Commercial and Agricultural Locations: Commercial buildings or separate businesses located within commercial buildings shall be assigned a physical address in a manner similar to townhomes and/or condominium buildings as previously explained.

N: Commercial or Mixed Use Buildings which front two or more Named Roadways: Abnormal Cases or those with complex buildings may require addressing on a case by case basis. Address requirements will take into account: Commercial Occupancy type and access, Residential Design Standards which require that the longest block has the entry door, and the requirements of the fire suppression system. Only one numerical address will be issued for each primary multiunit entrance, regardless of the number of units that it accesses.

O: If any Addressable Structure(s) is equipped with Fire Protection and/or Alarm System(s), including but not limited to: Fire Department Connection supplying a sprinkler and/or standpipe system, dry hydrant(s), cistern(s), Fire Alarm Control Panel(s), or any other fire protection or alarm system which may dictate special access, then those systems shall be considered in determining the address side of the structure(s) or in assigning multiple addresses as needed.

P. No address shall begin with zeros.

If addresses cannot be determined using the above steps, the Pitkin County Address Coordinator shall make the final determination.

9.08.090: SIGNAGE

Roadway signage in Pitkin County shall conform to the standards specified in this section. Owners of structures shall display and maintain assigned numbers in a conspicuous place on said structure, in the following manner:

A. Address Number on the Structure or Residence: When the residence or structure is within 50 (fifty) feet of the edge of the road right-of-way, the assigned address number shall be displayed at a location on the residence or structure that is easily visible from the roadway.

B. Number at the Road Line: Where the residence or structure is over 50 (fifty) feet from the edge of the road right-of-way, or is not visible or legible from the roadway, the assigned address number shall be displayed on a noncombustible structure (post, fence, wall, mailbox, etc) at the property line adjacent to the walk or access drive to the residence or structure, in addition to being displayed on the residence or structure itself. The signage shall be readable from all directions of travel along the roadway.

C. Required Signage at Gates: When a gate, whether it is locked or unlocked, placed barrier, or any other device or object impedes travel along a terminal public or private roadway or driveway, all addresses that can be reasonably accessed from the gate shall be posted on, or immediately next to, that gate.

D. Size, Color and Location of Number: Numbers shall be of a color that contrasts with their background color and shall be a minimum of 4 (four) inches in height with a minimum stroke width of 0.5 inch. Numbers shall be located to be visible from the road at all times of the year.

E. Proper Number: Every person who has been assigned a number shall remove any different number which might be mistaken for, or confused with, the assigned number.

F. Roadway Signage: The Address Coordinator will notify the Property Owner and/or their agent requesting the address assignment of any required Roadway Signage. Property Owners shall also be responsible for the cost of replacing required signage that is intentionally removed or otherwise missing. All signage must conform to the Manual on Uniform Traffic Control Devices standards. Any Property Owner installed signage must be installed by the effective date of the address assignment. Any fees for signage or installation owed by the property owner will be paid at the time of Address Assignment.

The Property Owner shall be responsible for the cost of signage resulting from New Development. Pitkin County Road & Bridge will order and install any signage required at the junction of a County Road unless the Property Owner requests to install their own signage. The Property Owner shall be responsible for the installation of signage on a private roadway.

The Property Owner shall be responsible for the cost and installation of signage at the junction of a private roadway. Pitkin County Road & Bridge will order (but will not install) standardized signage and hardware on behalf of any Property Owner at their request.

Pitkin County shall be responsible for the cost of roadway signage related to the naming of a roadway due to the correction of non-conforming areas or addresses that pre-existed the Titled Address Standards.

If Pitkin County initiates the re-naming of a roadway, Pitkin County shall be responsible for purchase and erection of the roadway sign.

G. Roadway Rules: All roads in Pitkin County are subject to these requirements and shall be named in accordance with these guidelines.

9.08.100: ENFORCEMENT PROCEDURE

A. Notice of Violation: The Address Coordinator, the Pitkin County Code Enforcement Officer, may deliver a Notice of Violation (NOV) pursuant to Chapter 10 of the Pitkin County Code, to any person who violates this Section. The NOV shall specify the violation, and may require that the violator either cease and desist immediately from all acts or omissions relating to the violation, or correct the violation within a specified time not to exceed 45 days. Failure to comply with the terms of an NOV may result in enforcement action. Issuance of a NOV shall not be deemed a condition precedent to enforcement pursuant to the procedures set forth in section 9.08.060: Road Naming Standards nor shall it preclude later enforcement action.

B. Civil Enforcement: In the event of any act or omission that violates any section of this Section the County Attorney, in addition to other remedies provided by law or specified herein, may institute an injunction, mandamus, abatement, or other appropriate civil action or proceeding to prevent, enjoin, or abate any unlawful activity, or to remove any improvements or construction resulting from such unlawful activity. In the event that such unlawful activity has damaged any county property, the violator shall be liable for any damage to county property resulting from any such unlawful activity, including, but not limited to, compensation for staff time and for use of county equipment or contracted services to repair such damage. Any civil action or proceeding may include a claim to recover all such money damages in addition to any and all claims for injunctive or other equitable relief.

C. Withdrawing or Withholding Permits: In the event that the Address Coordinator or the Code Enforcement Officer has knowledge of violation of this Section, pertinent County permits may be withdrawn after the violator is provided written notice and an opportunity for hearing before the Board of County Commissioners. If the violation involves activity under a Pitkin County Community Development building permit, the building permit may also be withdrawn after consultation with Community Development staff and after the violator is provided notice and an opportunity for hearing before the Board of County Commissioners. No further permits or approvals from the County shall be issued for any property subject to a NOV until the violation is cured as directed by the NOV.

D. Withholding Certificate of Occupancy: No certificate of occupancy shall be issued until the relevant property has satisfied the address conditions of this ordinance.

9.08.110: RENAMING AND NAMING ROAD NAMES

When a problem is identified with an existing address or action is taken that prompts the need for the naming/renaming of a street, property owners will be notified of the situation by United States Postal Service Certified Mail. Property owners may then submit possible road names, in accordance with this ordinance, for the Address Coordinator's approval. Deference shall be given to the Property Owner when selecting a road name. Once a submitted name is received, meets the criteria of the Address Ordinance and is approved, the Property Owner will be notified by United States Postal Service Certified Mail and any existing plat/address information kept by Pitkin County will be updated.

If a Property Owner does not respond to notification of the need for change or creation of a road name, the Pitkin County Address Coordinator has the responsibility and authority to assign and change an address and/or roadway name when deemed necessary. Roadways, easements and public thoroughfares are required to have an official Pitkin County name. It is the responsibility of property owners to notify tenants of said property of any address changes.

If at any time the Address Coordinator identifies an unnamed roadway conforming to the criteria set, an official notification will be sent to all affected property owners informing them of the roadway name approved by Pitkin County and the effective date of said name.

9.08.120: APPEALS

A. General: Any individual or other affected party may appeal any address related approval, conditional approval, denial or decision by County staff made pursuant to this Address Ordinance to the following:

1. The County Manager
2. The Board of County Commissioners

B. Appeal to the County Manager:

1. Appeal to the County Manager or designee(s) shall be made to the Address Committee in writing, no later than thirty (30) working days of the staff decision.
2. The County Manager or designee(s) is authorized to resolve an appeal concerning the naming and numbering of streets and parcels within Pitkin County. The County Manager or designee(s) shall promptly issue its decision in writing. The decision shall:
 - a. State the reason for the decision; and
 - b. Inform the appellant of the right to further appeal such decision to the Board of County Commissioners.

C. Appeals to Board of County Commissioners:

1. A decision made by the County Manager or designee, may be appealed to the Board of Pitkin County Commissioners. Such appeal shall be made in writing and submitted to the BOCC via the County Manager's Office within thirty (30) working days of staff's decision.
2. The appeal date shall be scheduled to take place as soon as reasonably possible. If an appeal is filed pursuant to this section, processing of any development permit, certificate of occupancy or approval that gave rise to the appeal shall be suspended until the Board has made a decision on the appeal. In cases where a lengthy appeal period is anticipated, the applicant may request and the Board may approve an

exception allowing for the review and processing of the development permit or approval, provided that the outcome of that process shall incorporate the results of the appeal.

3. At the appeal hearing the Board of County Commissioners shall review the record of the decision and shall provide the appellant and other affected persons an opportunity to discuss the grounds for the appeal.

4. The BOCC may reverse, modify, or rescind a decision on appeal if it finds that there has been a clear and demonstrable error or denial of procedural due process.

9.08.130: DEFINITIONS OF TERMS AND ABBREVIATIONS:

Access - A means of ingress and egress from a building site or parcel of land.

Address - The numerical portion of the street address, as assigned.

Addressable Structure - Any structure that has been deemed addressable by Pitkin County as described in the Address Ordinance. Generally only buildings normally occupied by human beings will be assigned addresses; provided, however, that other sites or structures, (barns, outbuildings, service areas) may be addressed where it may be helpful in emergencies. Such sites may be assigned addresses at the discretion of Pitkin County.

Apartment - Building that consist of three (3) units or more for rent.

Arterial Road - A high-capacity urban [road](#).

Avenue - A road that runs generally east to west, normally allowed only in municipal (city) jurisdictions (AV or AVE)

BOCC - Pitkin County Board of County Commissioners.

Building - A temporary or permanent structure having a roof supported by columns or walls and which can be used for the shelter, housing, or enclosure of persons, animals, or goods.

Building Site - An area of land or property where development is undertaken.

Boulevard - An unusually wide street with a central dividing median (BL or BLVD).

CAD - Computer Aided Dispatch. Computer software used by public safety dispatch centers.

Century System - A nationally recognized uniform system of measurement.

Circle - A short road that returns to itself (CR or CIR).

Collector Road - A low to moderate-capacity [road](#) which serves to move traffic from local [streets](#) to [arterial roads](#).

Condominium - The ownership of single units in a structure with common areas and facilities.

Condominium Unit - An enclosed space consisting of one or more rooms occupying all or part of a floor in a building or one or more floors or stories regardless of whether it is designed for residence, office, the operation of any industry or business, or any other type of independent use and shall include such accessory spaces and areas as may be described in the declaration, such as garage space, storage space, balcony, terrace or patio.

Consolidated Road Data - A software based application that contains street information, previous names, and alias street data that can be used to feed

GIS applications and other systems.

Court - A dead end right-of-way often ending as a cul-de-sac (CT).

Directional - As pertaining to North, South, East, and West, and will precede street name. The Planning staff will control the use of compass directions.

Drive - A curving secondary road (DR).

Duplex - Two units, including modular homes, placed one on top of another or attached side by side and sharing one or more common walls.

Fire Alarm System - A system or portion of a combination system that consists of components and circuits arranged to monitor and annunciate the status of fire alarm or supervisory signal-initiating devices and to initiate the appropriate response to those signals.

Fire Department Access Road - The road or other means developed to allow access and operational setup for fire-fighting and rescue apparatus.

Fire Protection System - Any fire alarm device or system or fire-extinguishing device or system, or combination thereof that is designed and installed for detecting, controlling, or extinguishing a fire or otherwise alerting occupants, or the fire department, or both, that a fire has occurred.

Highway - A designated State or Federal roadway (HY or HWY).

Interstate - A Federal thoroughfare system designed for national defense and population evacuation (I-#).

Lane - A short, low traffic, road that branches off another road and ends or connects to another secondary road (LN).

Loop - A short road that starts and returns to the same road (LP).

Lot - A parcel of land or any combination of several parcels of land occupied or intended to be occupied by a principle use or structure, together with any accessory structures or uses and such access ways, parking areas, yards, and open space required in these standards.

Mailing Address - Used by the U S Postal Service for the purpose of delivery of the U S Mail. Mailing address may or may not be identical to a site-specific address.

Manual on Uniform Traffic Control Devices - or MUTCD defines the standards used by road managers nationwide to install and maintain traffic control devices on all public streets, highways, bikeways, and private roads open to public traffic.

Mobile Home - A moveable or transportable structure, constructed to be transported on its own chassis and including one or more components that can be retracted for transporting the unit.

Mobile Home Park - Any site or parcel of land under single ownership where land or units are rented, and community utility(ies) provide for the occupancy of mobile homes.

MSAG - Master Street Address Guide. A proprietary database of roads served by emergency services of ~~Aspen~~ Pitkin County Communications.

Official Street Name - Street name approved and recognized by Pitkin County.

Parkway - Typically a four (4) lane or more roadway; allowed in municipal jurisdictions only, (PK or PKWY).

PCREDC - Pitkin County Regional Emergency Dispatch Center

Place - A road name suffix, allowed in residential subdivisions only (PL).

Private Road - Any road that is not maintained by a governmental entity or agency through the use of public funds.

PSAP - Public Safety Answering Point. Public safety call receiving and emergency services dispatch center.

Public Road - A roadway located on a public right-of-way and which meets the total improvement requirements for a public street, and is maintained through the use of public funds.

Public Safety Personnel - Any person functioning on behalf of a Law Enforcement, Fire, EMS, Mountain Rescue, Local Government, or Utility Agency.

Radio/Communications Service - Includes any radio communications, transmissions, dispatching or future 911 communications that may involve police, emergency, fire, or rescue operations, but not limited to these aforesaid operations.

Road - A suitable name suffix indicating a well-traveled secondary roadway often connecting with a U S or Colorado primary highway (RD).

Street - A suitable suffix indicating a well-traveled roadway, allowed only in municipal jurisdictions (ST).

Street Address - A unique identifier for each addressable structure within the County. The minimum adequate address consists of a numeric indicator and approved street name and suffix.

Structure - Any building, whether residential, commercial, industrial, or institutional in nature and use.

Thoroughfare - A general all-inclusive term for; roads, public or private; street, drive, cart way, easement, right-of-way, or any other word or words that means a way of access.

Townhome - One of a row of houses joined by common sidewalls.

Trail - An acceptable suffix for roadway names (TR).

Unit Designator - The portion of the Street Address used to distinguish individual units within the same structure.

Waterfront Property - Parcels of land that are accessible by waterborne law enforcement.

Way - An acceptable suffix for roadway names (WY).

Vanity Names - Any thoroughfare name that contains the whole name or that designates a specific person.

9.08.140: SEVERABILITY

If any section, clause, sentence or part of this ordinance (and the code adopted herein) is adjudged to be invalid by any court of competent jurisdiction, such invalidity shall not affect, impair or invalidate the other provisions of this ordinance and/or the code adopted herein, which can be given effect without such invalid provision.

9.08.150: ADDRESS ASSIGNMENT

This fee shall be assessed when a new address is required for development or requested by a property owner. This will apply for a new addressable structure on a vacant parcel or for an additional addressable structure to be built on an already occupied parcel. This fee shall be administered by Pitkin County Community Development and can be found in the Land Use Fee Schedule.

9.08.160: STREET NAMING

This fee shall be assessed when development requires that a new private roadway be named for three or more addressable structures with either existing or new addresses. This fee may also be assessed when a new street or street name change is requested without new development. This fee shall be administered by Pitkin County Community Development and can be found in the Land Use Fee Schedule.

(Title 9.08 Adopted Ord. 031.2012, 11-14-2012; § 9.08 repealed and reenacted Ord. 007.16, 04-13-2016)

9.12: ROAD MAINTENANCE AND MANAGEMENT PLAN

Pitkin County believes that it is important to have a comprehensive plan for Capital Improvements and General Maintenance. Planning, design, improvements and maintenance of roadways is an integrated process, interactive with other economic, political and social community processes. Safety and efficiency are concerns in the design, construction and improvement of roadways; however, the preservation or conservation of sites, scenes, open space, and vistas of scientific, historic, aesthetic, or other public interest, and the preservation of recreational opportunities for the use and enjoyment of local residents and the public in general are also important concerns of the County road system.

9.12.010: PURPOSE One purpose of this RMMP is to relate increased operations and maintenance costs and capital improvements to increases in growth and traffic volumes. When new roads are proposed or existing roads are subjected to increased use resulting from new development, the RMMP shall act as a guide to establish the magnitude and location of the improvements and additional maintenance necessary to alleviate the impacts.

9.12.020: ROAD MANAGEMENT

A: Road and Bridge Administration and Authority: The County manages the roadway network described within this document by the authority of the State of Colorado, by statute, CRS 30-11-107 (1) (h) and Section 2 of Title 43. The County road system including, but not limited to, maintenance, layout, alterations, deletions, additions, property acquisition, and traffic regulation. County jurisdiction extends to all public roads, whether currently identified or not, within unincorporated areas of Pitkin County other than State or Federal Highways, US Forest Service Roads, and Bureau of Land Management Roads.

The Pitkin County Planning Commission acts as an advisory board to the Board of County Commissioners in matters of route and circulation planning and development standards (C.R.S. 30-28-110 (1) (a), (d)). It conducts public hearings related to proposed new road construction and changes. County Staff is responsible for planning for future traffic circulation needs and establishing construction standards. In order to maintain a uniform road development policy throughout the County, the Public

Works Department enforces road construction standards, reviews plans, prepares specifications and contracts, and conducts surveys and inspections.

B: Capital Maintenance and Improvement Planning: The County will adopt a Capital Maintenance and Improvement plan pertaining to the roads and bridges through the yearly budget process, or on an as needed basis. The plan is based on recommendation using software, institutional knowledge, and public process.

C: Shared Roadways: Most County roads are also intermittently used for bicycle travel. There are some roads are more commonly used and should be signed designated as shared roadways. The following roads have been identified as having characteristics that would make them desirable roads on which to bike. These roads shall be designated by a sign being placed at either end of the road notifying travelers that the road is to be shared between bicycles and vehicles alike: Castle Creek Road, Maroon Creek Road, McLain Flats Road, Upper River Road, Lower River Road, Woody Creek Road, Snowmass Creek Road, Capitol Creek Road, Frying Pan Road.

D: Work With Others: The County will work with adjacent and partner jurisdictions such as the City of Aspen, Eagle County, and Garfield County, Town of Snowmass Village, Town of Basalt, Bureau of Reclamation, Bureau of Land Management, The United States Forest Service (USFS), and private interests to manage consistently and effectively.

Section 9.12.020 Amended (in part) [Ord. 024-2022](#), 05-22-2022

9.12 ROAD MAINTENANCE AND MANAGEMENT PLAN

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Section 9.12.020 Amended (in part) [Ord. 024-2022](#), 05-22-2022

9.12.030: ROAD MAINTENANCE

This RMMP is intended to provide policy guidance and performance standards for the maintenance of the County road system based upon service levels. The County road system is subdivided into four distinct levels of service representing the types of land use that are associated with the area: 1) High, 2) Moderate, 3) Low and 4) Limited. Management and maintenance planning should take into account the level of service designated for a particular section of road prior to initiating any work or improvements. Many roads are broken into multiple segments, which are given different service levels.

Three primary objectives inform this RMMP's approach to road maintenance: 1) Maintaining the existing integrity of the road system for the use and enjoyment of local residents and the public at large; 2) Defining road user expectations concerning the maintenance and general upkeep of each road within the County system; and 3) Protecting, through the comprehensive management of road usage, the unique character and environmental integrity of the rural and backcountry regions of Pitkin County.

The lack of maintenance by the County on any road is not indicative of a road's status as a public road.

The County maintains the road system based upon the following guidelines:

- A. Roads shall be defined into four Areas of Service: High, Moderate, Low and Limited.

- B. The maintenance service level shall be the highest in the high service area, and will be reduced accordingly for the moderate, low and limited service areas.
- C. Highway Users Tax Fund (HUTF) revenues shall be allocated to roads within the County system based on need, not road mileage.
- D. System-wide road rights-of-way shall be adapted, where possible, to accommodate pedestrian, bicycle and equestrian use. In the high service area, this accommodation may take the form of separate paths, trails or ways. In the moderate and low service areas, provisions for equal or mixed use of the road shall be placed and maintained. In the limited service area, the County the County maintains these areas sparingly. This may necessitate the use of a high clearance vehicle in many instances.
- E. The County will take all necessary steps to pursue its rights should private activities, including without limitation operation of private irrigation facilities in violation of § 45-3- 303, C.R.S., cause damage to its roads.

Section 9.12.030 Amended (in part) [Ord. 024-2022](#), 05-22-2022

9.12.040: SERVICE LEVELS

Service Levels are generally determined by traffic volumes. The service level is set for the purpose of resource allocation. The areas of service and the general expectations for service in each area can be described as follows:

- A. High service area: The high service includes roads within or adjacent to the more densely developed population areas such as the Aspen Snowmass area and collector roads which are used for commuting to and from these population centers. Roads within the high service area will receive the greatest level of maintenance by the County. Ease of travel by vehicles will be the primary goal of these maintenance efforts. Non-vehicular uses will be accommodated within road rights-of-way in a safe and effective manner, based upon the policies stated above.
- B. Moderate Service Area: The moderate service area includes roads that allow access to medium-density residential developments and improved subdivisions and may be used as commuting alternatives to Hwy. 82. Roads in this service area serve as the secondary road system. They typically carry less traffic than the high service area roads. Maintenance of roads in the moderate service area will attempt to provide comfortable safe travel. These roads will not receive the priority maintenance of the high service area roads, but will be maintained for safe passage as practicable.
- C. Low Service Area: The low service area includes roads that allow access to low- density residential, agricultural and public uses but are removed from high travel corridors and

population centers. These roads typically access low-density developments or popular recreational destinations. Maintenance of the roads in the low service area will attempt to provide access to specified areas, but not necessarily comfortable travel. These roads will not receive maintenance levels as high as those seen in the moderate area of service. Road users can expect the roads in this service area to be passable and adequately maintained at most times. However, the user must accept a reduced ease of travel on these roads because of the policies followed by the County. Snow plowing may not occur in as timely a fashion as seen in the moderate and high service areas. This reduced level of plowing may temporarily limit ease of passage. Motorized vehicles will share the driving surface with other modes of travel and must accommodate these additional uses.

- D. Limited Service Area: These roads provide access to outlying and backcountry areas of the County and are usually located within the United States Forest or areas zoned Rural and Remote Zoned. Very low design speeds are necessitated by harsh alpine or topographic conditions. These roads can be a part of the Pitkin County/USFS Joint Road System. Roads with this designation access several of the recreational opportunities in the County, and are often considered to be recreational opportunities themselves. Roads within the limited service area will receive the least amount of maintenance. Road users can expect a vigorous experience that requires an additional amount of attention and awareness when traveling. Roads may be restricted to certain forms of travel in some portions of the service area. No regular plowing of snow will be performed in the limited service area without prior consent by the County, requiring the user to be prepared to leave the vehicle at designated parking areas and continue travel with other means of transport (other over-the-snow modes of transportation are allowed, however, no snow removal is allowed). Roads may become closed without warning due to acts of nature such as high winds and landslides. All of these conditions will require the road user to plan for additional trip time and be prepared for conditions that are not expected in the low, moderate or high service areas.
- E. Other Public Roads: Not all public roads in Pitkin County have been identified and may not be reflected on the County Road List as a road designated with a service level. Thus, not all public roads are included in the Pitkin County road List or Service Level List of Map. However, inclusion of a road on the Pitkin County Road List and depiction on the maps below is indicative of the public status of a road.
- F. Road List: By adopting this document, The Pitkin County Board of Commissioners (BOCC) adopts an official Pitkin County Road List showing all roads that have been incorporated into the County road maintenance system. This list is updated to reflect additions, deletions, and alterations. This list is completed in four parts based on service level. This list is also used to develop other formal lists, such as the roads submitted for Highway User Tax Fund (HUTF). Maps and lists of roads are as follows:

Section 9.12.040 Amended (in part) [Ord. 024-2022](#), 05-22-202

Figure 2 - Map of Traffic Counts Per Day

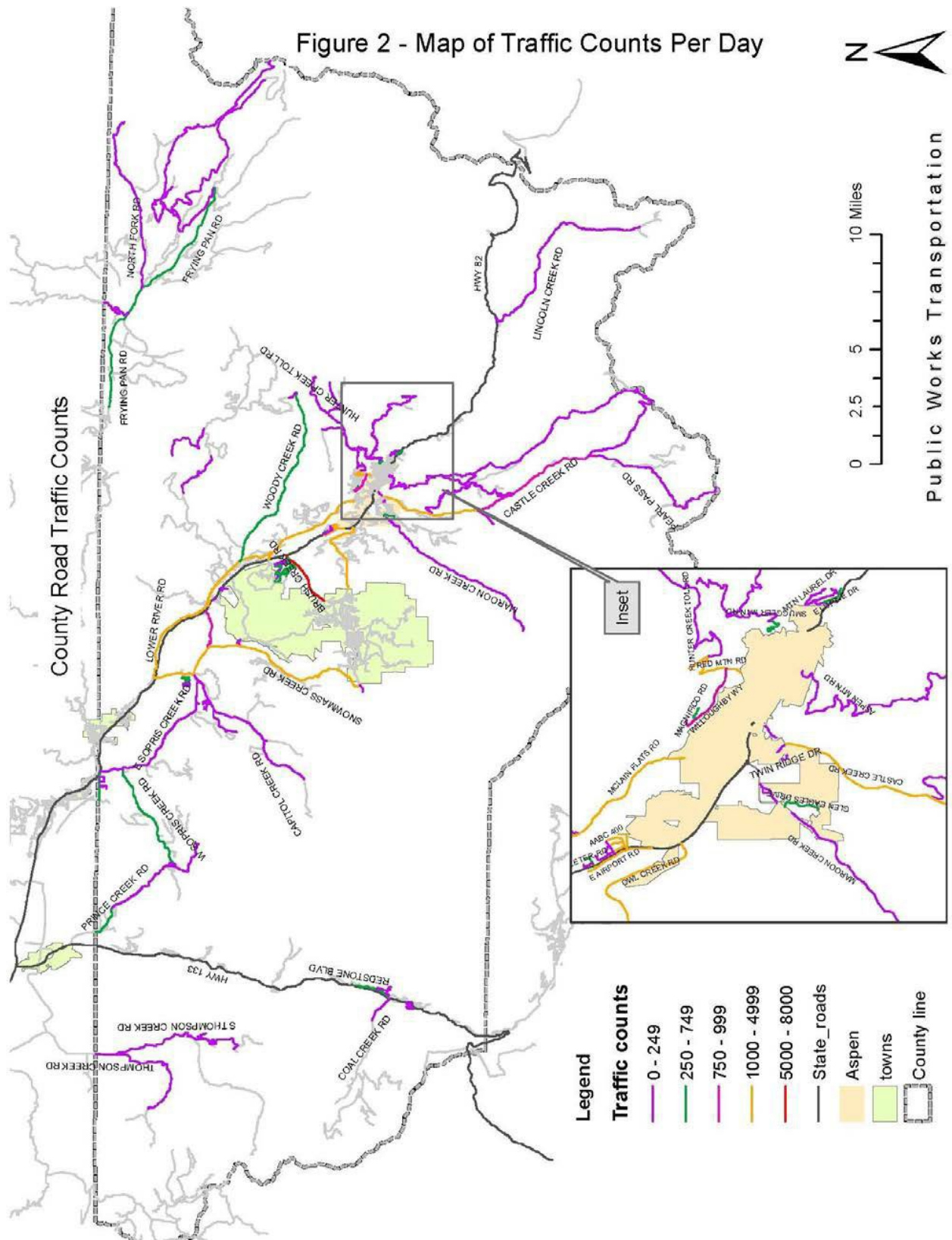
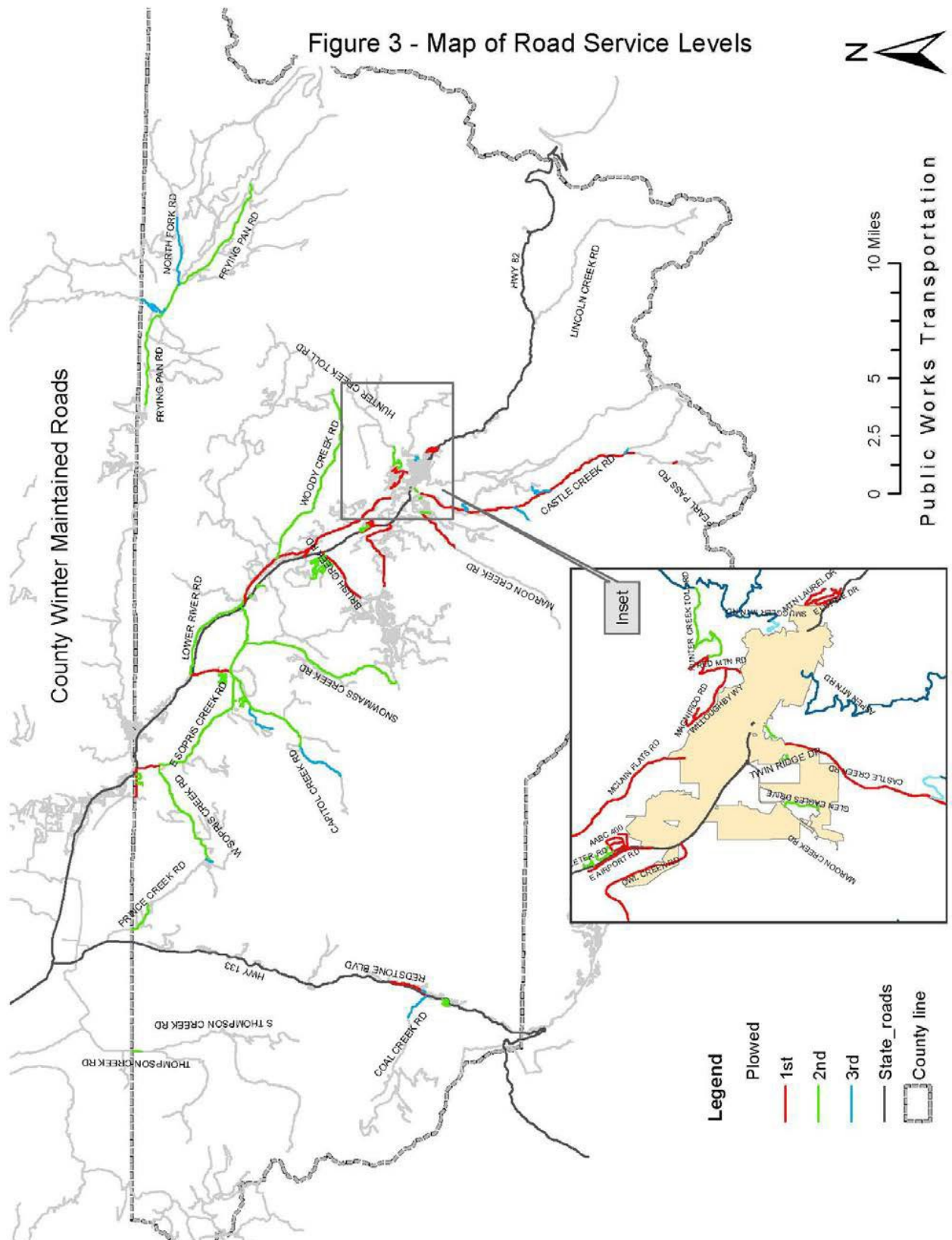


Figure 3 - Map of Road Service Levels



9.12.050: HIGH SERVICE AREA ROADS

Table 1.03 indicates High Service Area Roads managed and maintained by Pitkin County:

Road Number	Road Name	Miles
2	Emma Road	1.50
3	Redstone Blvd	1.73
7A	Sopris Creek Road	1.13
10	Brush Creek Road	2.70
11	Snowmass Creek Rd (Lower)	1.76
12	Owl Creek Road	3.85
12B	Airport Frontage Road	.95
13	Maroon Creek Road (Lower)	2.25
15	Castle Creek Road	4.50
17	Upper River Road	3.50
17A	Smith Way	0.39
17B	Gerbaz Way	0.49
19	McLain Flats Road	4.61
20	Red Mountain Road	1.16
65	Willoughby Way	1.06
69	Magnifico Drive	0.21
100	Mountain Laurel Drive	0.87
101	Mountain Laurel Court	0.10
102	West Lupine Drive	0.22
103	East Lupine Drive	0.30
AABC1	100 Road	0.20
AABC2	200 Road	0.26
AABC3	300 Road	0.26
AABC4	400 Road	0.29
AABC5	Baltic Avenue	0.18
12C	Service Center Road	0.18
	Total	34.65

9.12.060: MAINTENANCE PRACTICES FOR HIGH SERVICE AREA ROADS

Road maintenance practices are based on the type of vehicles most appropriate for the service area. Road maintenance in high service area roads endeavors to provide the greatest level of service for all vehicles and includes the following operations:

- A. Plowing: Snow plowing shall be provided by the County or others (such as Homeowners' associations, contractors, or private individuals) by agreement with the County, to maintain efficiency on public roads and to provide access to recreational attractions and private residences. Higher traveled routes shall take precedence over lesser-traveled routes. The lack of plowing by the County is not indicative of the public status of any road.

Under the Colorado Revised Statutes (CRS), § 42-4-1406(1), —No person shall throw or deposit upon any highway any glass bottle, glass, stones, nails, tacks, wire, cans, or other substance likely to injure any person, animal, or vehicle upon such highway. In furtherance of this section and the County's other powers to regulate County Roads, it shall be unlawful for any person to deposit snow plowed from a private driveway, road or any other source, onto any County road. Pitkin County requires that snow removal contractors and private citizens not plow snow from their driveways, sidewalks, etc. onto County roads.

- B. Mowing: Mowing will be performed where necessary to provide a visible and defined shoulder and to provide a safe line of sight and reduce encroaching vegetation's impact causing drivers to veer into the oncoming lane.
- C. Herbicides: Herbicides will be used to control weeds listed on the Pitkin County designated noxious weed list in conjunction with mowing and revegetation as required by the Pitkin County Noxious Weed Management Plan. All herbicide applications will be performed by trained personnel or qualified contractors following all label restrictions and guidelines.
- D. Cross Drainage: Cross-drainage should be carried off the driving surface to prevent damage to the road which may be detrimental to proper safety. Cross culverts shall be used to carry drainage under the road. Culverts shall be sized to contain a significant natural drainage event, but the County cannot size for misoperation of private irrigation facilities that may result in damage to County Roads. .
- E. Side Drainage: Drainage channels or ditches should be placed and maintained on the uphill side of roads. Aggressive revegetation of side ditches will allow the ground to stabilize and reduce the need for future maintenance to ditches. Side drainage shall be channeled into defined ditches or curb and gutters. The County cannot size for misoperation of private irrigation facilities that may result in damage to County Roads. Cleaning of roadside ditches and road culverts will be completed as needed to ensure proper drainage. Culverts under private drives and ditches outside of the Right of Way shall be the responsibility of the property owners.
- F. Irrigation Infrastructure: It shall be the responsibility of the owners of any irrigation infrastructure, including but not limited to ditches, canals, flumes, headgates, culverts, and other similar infrastructure, including ditches located adjacent to, within, or under County road right-of-ways, to maintain said infrastructure in good repair and in a manner that does not cause damage to County roads and County road right-of-ways. Pursuant to § C.R.S. 37-84-101, et seq., the owner of any irrigation infrastructure shall be liable for any damage to County property or right-of-ways caused by the failure to maintain irrigation infrastructure in good repair.
- G. Signage: Pursuant to § 42-4-105, C.R.S., all County roads shall meet the signing requirements of the "Manual on Uniform Traffic Control Devices" or other applicable guidelines as determined by the County Engineer. Unimproved Roads shall be signed at the discretion of the County. Other information signage will be posted to define road names, route numbers, and road service areas as necessary. Signage should be updated during capital maintenance and improvement projects to the standard current at the time.
- H. Tree/Shrub Trimming and Removal: Where necessary for safety or protection of the traveling

public and vehicles, tree branches and shrubs may be trimmed. Whole trees or shrubs may be removed, but only when no other method will correct the problem. Tree and shrub trimming should be done judiciously.

- I. Side Slopes: Where necessary for safety of travel, side slopes may need to be cut back in the course of routine maintenance. Such sloping should be kept to a minimum, and other techniques, such as embankment (rock walls) and revegetation, should first be pursued to obtain adequate stabilization if physically and financially feasible.
- J. Road Surfacing: The existing road surface normally should be continued. For high service areas, the preferred surface type is chip seal or asphalt.
- K. Parking Areas: is only allowed in designated areas. The County reserves the right to restrict parking in areas based on operation needs and can alter parking administratively. Parking along County Roads is generally prohibited. In an attempt to satisfy needs for the traveling public, public parking areas may be allowed and/or improved on an as-needed basis, provided that adequate right-of-way exists. Parking areas may also be provided within designated nodes. Other parking within the right-of- way may be permitted on a case by case basis using parking permits.
- L. Sidewalks: There are several areas of the County that have sidewalks and delineated pedestrian and bike ways adjacent to the traveled way. These areas will be maintained as needed once road priorities have been met.

9.12.070: MODERATE SERVICE AREA ROADS

Table 1.04 indicates Moderate Service Area Roads managed and maintained by Pitkin County:
*Roads identified with * indicate: maintained by HOA, Metro District, or other*

Road Number	Road Name	Miles
1	Thompson Creek Road (Lower)	0.4
4	Frying Pan Road	11.77
5	Prince Creek Road (Lower)	1.62
6	West Sopris Creek Road	5.18
7	East Sopris Creek Road	6.08
8	Watson Divide Road	1.95
8A	Jack Gredig Lane	0.5
9	Capitol Creek Road	5
11	Snowmass Creek Road	9.26
15	Castle Creek Road	6.32
16	Lower River Road	4.93
18	Woody Creek Road	8.81
20A	Hunter Creek Toll Road	1.81

37	South 7th Street	0.22
169	Glen Eagle Drive	0.56
188A	Twin Ridge Drive	0.14
AVRD	Aspen Village Road	0.16
* BCV1	Juniper Hill Road	2.42

*	BCV2	Sage Brush Lane	0.11
*	BCV3	Turtle Cove	0.09
*	BCV4	Daniel Drive	0.11
*	BCV5	Medicine Bow Road	2.35
*	BCV6	Upper Ranch Road	0.74
*	CRP1	Chair Mountain Drive	0.47
*	CRP2	Crystal Park Drive	0.52
*	CRP3	Ruby Mountain Drive	0.14
*	CRP4	Bear Creek Drive Lane	0.13
*	DKR1	Horseshoe Drive	0.56
*	GSM1	Gateway Road	1.49
*	GSM2	Mule Deer Run	0.11
*	GSM3	Lighthill Road	0.69
*	GSM4	Elk Range Drive	0.1
*	LEC1	Capitol Drive Avenue	0.06
*	LEC2	Little Elk Creek Drive Avenue	0.47
*	LEC3	Haystack Lane	0.43
*	LEC4	Katydid Lane	0.21
*	LEC5	Driskell Lane	0.15
*	LEC6	Davidson Lane	0.06
*	LEC7	Alexander Avenue	0.16
	NF1	Sage Way	0.27
	NF2	Front Way	0.12
	OE1	Apple Drive	0.4
	OE2	Cherry Drive Lane	0.07
	OE3	Plum Drive Street	0.07
	12D	Animal Shelter Road	0.11
		Total Mileage	77.32

9.12.080: MAINTENANCE PRACTICES FOR MODERATE SERVICE AREA ROADS

Road maintenance in moderate service area roads will be consistently maintained at a level lower than the high service area roads, and will not allow improvements such as widened shoulders, straightened alignments, or improved sight distance to occur simply to improve ease of travel. Improvements may occur on road segments when warranted by safety reasons. Heavy transport vehicles may be restricted in moderate service area roads. Heavy transport vehicles will be restricted on West Sopris Creek Road during the spring thaw, (Late March through May).

Moderate service area road maintenance practices include the following operations:

- A. Plowing: Snow plowing shall be the same as it is for High Service Area Roads except these roads will generally be addressed after higher service level roads are completed, or as sequencing of service dictate.
- B. Grading: Road grading shall be conducted on a routine basis dependent upon traffic volumes and the integrity of the road surface. Grading shall include the clearing of shoulder areas and the definition of roadside ditches where required.

- C. Mowing: Mowing shall be conducted when necessary to provide adequate sight distance and reduce encroaching vegetation's impact causing drivers to veer into the incoming lane.
- D. Herbicides: The herbicide policy for moderate service area roads is the same as for high service area roads.
- E. Dust Control: A minimal level of dust treatment may be used where dust control can be deemed necessary based on the following factors: dust generation, traffic counts, development impacts, residential proximity to the road way, recreational uses, aggregate loss, maintenance need and available budget,
- F. Cross Drainage: Cross-culverts shall be used to carry drainage under the road. Culverts shall be sized to contain the significant drainage event, but the County cannot size for misoperation of private irrigation facilities that may result in damage to County Roads. Cross road culverts are to be cleaned annually to ensure proper drainage.
- G. Side Drainage: Side drainage shall be the same as specified for high service area roads.
- H. Signage: Signage shall be the same as specified for high service area roads.
- I. Tree/Shrub Trimming and Removal: Tree and shrub trimming and removal shall be the same as specified for high service area roads.
- J. Side Slopes: Side slope maintenance shall be the same as specified for high service area roads.
- K. Road Surfacing: For moderate service areas, the preferred surface type is gravel or chip seal.
- L. Parking Areas: Roadside parking is prohibited along all County roads and policies shall be the same as for High Service Area Roads.

9.12.090: LOW SERVICE AREA ROADS

Table 1.05 indicates Low Service Area roads managed and maintained by Pitkin County:

Road Number	Road Name	Miles
1	Thompson Creek Road	3.34
3B	Osgood Road	0.27
3D	Coal Creek Road	1.3
4A	Eagle-Thomasville Road	1.88
4B	Northfork Road (Lower)	3
5	Prince Creek Road (Upper)	3.36
13 (FS 125.1-2)	Maroon Creek Road (Upper)	6.32
15 (FS 102)	Castle Creek Road (Upper)	1.77

6	West Sopris Creek	0.44
9	Capitol Creek Rd (Upper)	2.49
9A	Elk Creek Road	1.78
11A	Wildcat Way	0.45
11C	Snowmass Creek Road (Upper)	0.38
14	Summer Road/ Aspen Mt. Rd.	4.5
15A	Midnight Mine Road (Lower)	0.78
15B	Conundrum Creek (Lower)	.91
15C	Taylor Pass-Express Creek	0.2
15G 3)	Little Annie Road (Lower)	1.33
21	Smuggler Mt. Road (Lower)	0.5
	Total	35.00

A: Maintenance Practices for Low Service Area Roads: Road maintenance in low service area roads will be a low priority. Basic services will be similar to moderate service area roads, but will be a lower priority than the moderate level of service. Capital road improvements will be made only when warranted by safety reasons. Low service area road maintenance practices include the following operations:

1. Plowing: High and Moderate Service Area Roads shall take precedence over Low Service Area Roads. Plowing shall not be permitted on the road simply to promote vehicular travel into a more remote area. When there is not an approved residence, recreational area, or agricultural purpose to plow the road, plowing shall end at the end of the moderate service area road or at the last approved access on the low service level road.
2. Closures/Opening: Selected low service level roads may be closed during the winter season. Prince Creek Road will close on or around December 1st and will open on or around April 15th. Locking or closing of gates will occur on Castle Creek Road and Maroon Creek Road on November 15th and will be reopened no later than May 15th.
3. Grading: Road grading shall be the same as for Moderate Service Area Roads.
4. Mowing: Mowing shall be the same as for High and Moderate Service Area Roads.
5. Herbicides: Only noxious weeds will be controlled with herbicides.
6. Dust Control: A minimal level of dust treatment may be used where dust control can be deemed necessary based on the following factors: dust generation, traffic counts, development impacts, residential proximity to the road way, recreational uses, aggregate loss, maintenance need and available budget.
7. Cross Drainage: Culverts should be installed when necessary, however, water bars may be cut into the road to assist with drainage problems. Culverts are to be cleaned annually to ensure proper drainage.
8. Side Drainage: Side drainage shall be maintained the same as specified for moderate and high service area roads.
9. Signage: Signage shall be the same as specified for the moderate and high service area roads.
10. Tree/Shrub Trimming and Removal: Tree and shrub trimming and removal shall be the same as specified for the moderate and high service area roads.
11. Side Slopes: Side Slopes shall be the same as specified in the moderate and high service area roads.
12. Road Surfacing: The preferred road surface is native soils or gravel.

13. Parking Areas: Roadside parking is generally prohibited along all County roads except as delineated by signage, at nodes, or other areas where applicable.
14. Closures/Openings: Selected low service level roads may be closed during the winter season. Prince Creek Road will close on or around December 1st and will open on or around April 15th.

9.12.100: LIMITED SERVICE AREA ROADS

Table 1.15 indicates limited service area roads managed and maintained by Pitkin County: Also included in the limited service areas are roads of the USFS, which are summer maintained by Pitkin County in agreement with the United States Forest Service.

Road Number	Road Name	Miles
1	Thompson Creek Rd.	2.36
1A	No. Thompson Creek Rd.	1.35
1C (FS 305.1)	So. Thompson Creek Rd.	7.38
1D (FS 305.1)	Lake Ridge Road	1.84
1E	Assignment Road	0.50
3A	East Creek Road	1.39
3C	Yellow Creek Road	0.32
4 (FS 105)	Frying Pan Road <i>(after</i>	10.59
4B (FS 501)	Northfork Road (Upper)	5.29
4I (FS 527)	Ivanhoe Lake Road	2.48
4L	Powerline Road	10.07
4M	Diemer Lake Road	2.09
4N	Seller Lake Road	2.0
6A (FS 311)	Dinkle Lake Road	2.80
9D	Nicholson Creek	0.19
15A (FS 118)	Midnight Mine Road	4.51
15B (FS 128)	Conundrum Cr.	0.20
15C (FS 122)	Taylor Pass-Express Creek	4.54
15E (FS 123)	Richmond Hill Road	11.75
15G (FS 140.1-3)	Little Annie Road (Upper)	3.16
15I (FS 102.2)	Pearl Pass	6.10
18B	Larkspur Mt. Creek)	.5
3179.618D	Bear Creek Road	2.89
18E	Vagneur Road	2.53
20A (FS 130.1-3)	Hunter Creek Toll Road	4.18
20B (FS 130.3A1)	Four Corners Road	1.00
21 (FS 131)	Smuggler Mt. Road	5.97
21A (FS	Smuggler Cut Off	2.80
22 (FS 130.1-3)	Burnt Hole Road	1.89
23 (FS	Lincoln Creek Road	10.00
	Total	112.67

Total County Road Mileage: 263.41 Miles

9.12.110: MAINTENANCE PRACTICES FOR LIMITED SERVICE AREA ROADS:

Limited service area roads will be maintained primarily to accept non-vehicular traffic. Only vehicles with higher clearances, and four-wheel or all-wheel drive, will travel easily on the limited service area roads. Limited service area road maintenance practices include the following operations:

1. Plowing: The plowing of snow, by the County or others, shall not be undertaken within limited service areas unless prior approval is granted from the County. Access to private properties and approved recreational attractions shall be gained via other means, such as snow cat, snowmobile, cross country skiing, snowshoe, or foot. Parking nodes shall typically be provided at the border of the limited service area to facilitate this transfer of transportation modes.
2. Closures/Opening: Selected limited service roads may be closed during the winter season. No plowing of these selected roads will occur. Dinkle Lake Road will close on or around December 1st and will open on or around May 15th. Hunter Creek Toll Road is closed except one week before first hunting season until the week after the last hunting season. Summer Road, Lincoln Creek Road, Upper Frying Pan Road are closed seasonally based on snow accumulation.
3. Grading: Grading shall be conducted only when absolutely necessary to keep the road open to safe passage for four wheel drive and/or high clearance vehicles, and to maintain adequate drainage. Grading shall not be conducted solely for the convenience of travel. When conducted, grading should be kept within the width of the driving surface, ten to fifteen feet on a one-lane road and twenty to twenty five feet on a two- lane road. Roads will be inspected at least once a year to determine what maintenance, if any, is needed. Grading or drainage work will only be done by the approval of the Public Works designee.
4. Mowing: Mowing shall be discouraged as a method of improving sight distance.
5. Herbicides: The herbicide policy for limited service area roads is the same as for low service area roads.
6. Dust Control: Dust abatement should be performed through the reduction of traffic. Conventional means of dust abatement, such as salt application, shall not be conducted.
7. Cross Drainage: When absolutely necessary, drainage swales cut across the road surface shall be used to promote cross drainage. However, cross culverts or lateral drainage improvements may be required for some stream crossings and in areas of extreme water saturation.
8. Side Drainage: Every attempt shall be made to refrain from placing drainage channels or ditches on roads within limited service areas. However, when a roadside ditch must be placed as the only means of correcting a significant drainage or water saturation problem, the ditch shall be incorporated into the existing roadway rather than placing the ditch on previously

undisturbed ground. Roadside obstructions, such as windrows from grading, should be cleared to promote the movement of water off the driving surface.

9. Signage: Signage shall conform to applicable standards in the latest edition of the MUTCD, and/or applicable USFS standard. Generally signage is to be minimal on this type of roadway.
10. Tree/Shrub Trimming and Removal: Tree and shrub trimming and removal shall be the same as specified for low, moderate and high service area roads.
11. Side Slopes: Side slope maintenance shall be the same as specified for low, moderate and high service area roads.
12. Road Surfacing: For limited service areas, the preferred surface type is dirt or natural surface. The importing of materials for road surfacing shall not occur except in the case when the road is rendered impassable and no other materials exist locally.
13. Parking Areas: Roadside parking is prohibited along all County roads and policies shall be the same as for High Service Area Roads.

9.12.120: ROAD MAINTENANCE AGREEMENTS AND SETTLEMENTS

Special circumstances may exist for additional road maintenance agreements and settlements, which are listed below as follows:

- A. Intergovernmental Agreements: The County may find it cost effective or necessary to contract with other Governmental entities to provide appropriate level of service during the winter months for snowplowing and grading services on County roads. Intergovernmental agreements (IGA's) are contracts signed between two governmental agencies and adopted by Ordinance. An IGA between Pitkin County and Eagle County is in place for efficiency and cost savings reasons to maintain the Eagle and Pitkin County portions of the Frying Pan Road. This IGA is reviewed every two years by Ordinance. Copies of IGA's and Ordinances may be obtained from the Clerk to the Board's office or by calling Public Works Staff to request a copy.
- B. Contracts with private individuals/companies: The County may find it cost effective or necessary to require property owners in remote areas of the County to provide their own snowplow services on County roads. This agreement/contract is between Pitkin County and the property owner and the services are at the property owners' expense. Pitkin County contracts with property owners on the upper portion of Capitol Creek Road for road maintenance and snow removal at the property owners' expense. Resolution 99-107 and Contract 99-83 were approved by the Board of County Commissioners. Copies of contracts with private individuals/companies for snowplow services on County roads are available through the Clerk and Recorder's office, or by calling Public Works Staff to request a copy.
- C. Special Road Maintenance Agreements: The Hunter Creek Toll Road is governed in certain

respects by the Hunter Creek Settlement Agreement, recorded along with Pitkin County Resolution 142-2004. This resolution specifies certain road maintenance responsibilities and rights held by both the County and private property owners living along certain areas of the road. Copies of settlements regarding County Roads with private individuals/companies are available through the Clerk and Recorder's office, or by calling Public Works Staff to request a copy.

- D. Pitkin County Open Space Road Management: To best manage the significant use of Smuggler Mountain Road as a Recreational trail, all non-motorized recreational uses including hiking, bicycling, walking, equestrian, and Nordic skiing uses are subject to the provisions of Title 12 of the Pitkin County Code, including but not limited to open space parking restrictions and specialized management plans. These requirements may be enforced by the Pitkin County Open Space Ranger and her/his designees, or as otherwise provided by Article 6 of Title 12.

9.12.130: AMENDMENT AND MODIFICATION OF SERVICE LEVEL

- A. Request for Modification: The service and maintenance levels established in this RMMP may be amended if recommended by Staff and approved through ordinance by the Board of County Commissioners (BOCC) in connection with either a specific development application under the Pitkin County Land Use Code or written proposal. If any person or persons owning property accessed, directly or indirectly, by a County road desires a change in the maintenance level and classification of such County road, such person or persons shall submit a written proposal to the Public Works designee, with a copy to Community Development if submitted in connection with a land use application, outlining the current maintenance level, detailing the changes which need to occur, and explaining why the modification needs to take place. County Public Works Staff and the requesting applicant shall present said request to the appropriate caucus for review.
- B. Evaluation: Public Works Staff will then evaluate and make a recommendation to the Board of County Commissioners based on the following criteria:
1. Appropriateness of current service level designation.
 2. Operational and budgetary impacts.
 3. Public safety.
 4. Compatibility with character of surrounding area and zoning.
 5. Current traffic volumes.
 6. Impact on traffic volumes and related consequences.
 7. Environmental impacts.

Staff will present caucus and Staff recommendation to the Board of County Commissioners for a service level change decision.

- C. Cost of Increased Maintenance: If the reason for an increase in maintenance is specifically and uniquely attributable to new development by the proponent, the Board of County Commissioners may determine by specific findings what proportion of the costs of the requested change in maintenance shall be borne by the proponent rather than by the public at large. Determination shall be based upon a proportionate share of the maintenance costs which are incurred in serving the new development and may require the proponent to contract with the County to pay for such increased maintenance as a condition of the County's provision of such maintenance. The costs charged to the proponent must not exceed the proponent's roughly proportionate share of the

actual costs incurred in serving the development, but actual costs may include administration and overhead expenses. In the written proposal, the proponent shall identify other property owners who may benefit from the change in maintenance and a recitation of the extent to which other owners are willing to participate in the costs of increased maintenance.

9.12.140: ACCEPTANCE OF ROADS FOR MAINTENANCE

Dedicated roads within Pitkin County's jurisdiction are accepted for maintenance by ordinance passed by the Board of County Commissioners only after certain requirements have been met. When acceptance has been requested in writing and the minimum requirements have been satisfactorily met, the County Public Works Department will submit a recommendation for acceptance or non-acceptance to the Board of County Commissioners for final action. The requirements are as follows:

- A. Minimum Acceptance Requirements:
 1. Roads will not be accepted before the County Public Works Department approves said roads and recommends acceptance.
 2. Roads within subdivisions or similar type of development will not be accepted in portions shorter than block lengths, which shall end at intersections or cul-de-sacs.
 3. Roads will not be accepted unless they meet minimum or modified standards.
 - Gravel roads shall have a minimum of 4" of ABC CI6 or more.
 - Other requirements may be added by Staff depending on the context of the roadway.
 4. Roads will not be accepted unless they connect to another County-accepted road.
 5. Roads will not be accepted until all combustible or objectionable material is cleared from the roadside and until all required signs are installed in accordance with County standards.
 6. All required subsurface utilities shall be installed prior to finishing subgrade. The longitudinal mains shall be located outside the roadway limits. All laterals crossing the roadway shall be installed prior to road acceptance.
- B. Subdivision Roads: Acceptance of platted subdivisions by the County, or of a right of way for purposes of public access, does not constitute acceptance of the roads and rights-of-way for maintenance. Until each road is specifically accepted for maintenance by an ordinance passed by the Board of County Commissioners, maintenance and construction is the responsibility of the owners of the land within the subdivision.
- C. Change in Service Level: Once a service level and associated maintenance practice has been established for any County road, the service level may be changed only in accordance with the procedures established in Section 1.08.

D. Requests for Changes to Roadway

Residents that desire a change in service or wish to complete a capital improvement (ie. Speed bumps, road surface change, significant sign changes) to a County Road will need to complete the following steps:

- (1) Obtain approval from appropriate neighborhood group, ie. Caucus, HOA, etc...
- (2) Obtain approval from Staff
- (3) Obtain approval from BOCC (if needed)

Approval criteria to be considered by the County are as follows: public support, conformance to appropriate area master plan, potential environmental impact, conformance to area character, additional maintenance requirements, capital replacement costs, as well as, other considerations.

9.12.150: ROAD AND EASEMENT VACATIONS

On occasion, vacation of County roads or various easements may become warranted due to particular circumstances or changes in the overall development pattern. The Board of County Commissioners may vacate any County road or any portion of a County road. No road or portion thereof shall be vacated if it will leave a parcel of land without access to a public road as set forth in C.R.S. 43-2-303(2).

The procedure and submission requirements for a road or easement vacation are outlined in the Pitkin County Land Use Code (available from the Pitkin County Community Development Department) and shall be in compliance with and subject to C.R.S. 43-2-301 et seq. together with any amendments thereto.

9.12.160: PROCEDURES TO CONTROL TRAFFIC AND ROAD USE

In addition to those set forth in the Colorado Revised Statutes and elsewhere in this RMMP, the following procedures and operations may be used to control traffic and road use on the County road system:

- A. Nodes: Nodes are designed to be used in areas where a change of activity may take place. These areas are generally located at the end of winter maintenance areas for winter and at a place that a change of activity takes place in the summer. The node signage will inform the users of change in the level of service, will serve as a parking area and allow users to leave their cars for other forms of transportation, and will signify the end of winter maintenance on the road. The nodes will be established and maintained by the County wherever deemed necessary.
- B. Weight/Size Restrictions: Several roads within the limited, low and moderate service areas are not adequate to carry heavy or oversized vehicles (i.e., dump trucks, tractor trailers and fully loaded concrete trucks). Restrictions of oversized vehicles on certain County roads will be posted, and permits must be obtained (Section 1.39) for overweight/oversized transport vehicles.
- C. Restriction of Road Use: When necessary, a County road may be temporarily closed for hazardous conditions, special events, maintenance and repairs, and use of a County road may also be temporarily restricted due to road surface condition and/or other needs, as determined by County Staff. The Public Works designee will issue appropriate public notices when such a closure or restrictions occur. Closures or restrictions of a more permanent nature, such as permanent restrictions to motorized vehicle use, shall occur by ordinance, with proper notice to all property owners who access their property by the

road proposed to be closed. When a request for closure is made in connection with a land use application, it shall be referred to the Public Works/Transportation Department for processing in accordance with this section.

- D. Temporary Construction Access: Temporary construction access shall only be granted for an access previously approved in land use review (refer to Access Permitting section of this RMMP).
- E. Prohibition of Construction and Maintenance on Major County Roads: In order to prevent conflicts with increasing commuter traffic on major County roads, construction and major maintenance will be prohibited during certain times.
- F. Road and Easement Vacations: On occasion, vacation of County roads or various easements may become warranted and approved by the Board of County Commissioners (Section 1.10).
- G. Amendment: When necessary, the Pitkin County Road Maintenance and Management Plan may be amended as recommended by Staff and approved through formal ordinance by the Board of County Commissioners.

9.12.170: PITKIN COUNTY BRIDGE MAINTENANCE

Pitkin County uses the State mandated Bridge Inspection and Maintenance Report that is completed biannually. Inspections are performed on each bridge, and capital repair and maintenance recommendations are made. The work is categorized and ranked for items most critical to the safety and the preservation of the integrity of each structure. The work is completed based on the inspection, prioritization and as budget allows. Table 1.13 lists bridges that are maintained by Pitkin County, and are part of the County's infrastructure.

TABLE 1.13 PITKIN COUNTY BRIDGES

Thomasville Bridge Frying Pan River PIT-004-24.8A	Snowmass Creek Bridge (Campground Bridge, Upper) Snowmass Creek PIT-011-10.8	Old Snowmass Bridge Roaring Fork River PIT-016-00.1A
Snowmass Creek Bridge Snowmass Creek PIT- 011- 01.2A (Lower)	Maroon Creek Bridge Maroon Creek PIT-013- 01.8A	Gerbaz Bridge Roaring Fork River PIT-017-00.2A
North Fork Bridge North Fork/Frying Pan River PIT- 004-26.3A	Castle Creek Bridge (1st) Castle Creek PIT-015-03.5A	Smith Bridge (arch) Roaring Fork River PIT- 019-00.3A
Lime Creek Bridge Lime Creek PIT-04A-1.0	Castle Creek Bridge (2nd) Castle Creek PIT-015-09.0 (	Slaughterhouse Bridge Roaring Fork River PIT-019-01.1A
Redstone Bridge (Upper) Crystal River PIT-003- 00.1	Midnight Mine Bridge Castle Creek PIT-15A-00.2	Red Mountain Road Bridge Hunter Creek PIT-020- 00.2A
Redstone Bridge (Lower) Crystal River PIT-003- 01.8A	Conundrum Creek Bridge (1st) Castle Creek PIT-015B- 002A	Redstone Ranch Acres Bridge Crystal River PIT- 133-05.0A
Meredith Bridge Frying Pan River PIT-004-22.0	Conundrum Creek Bridge (2nd) Conundrum Creek PIT- 015B- 00.5A	Watson Divide Bridge Snowmass Creek PIT- 008- 00.1A
Lenado Bridge Woody Creek PIT-18-8.83	Lincoln Creek Bridge Lincoln Creek PIT-23-00.1	

9.12.180: ROAD DESIGN STANDARDS

The purpose of these standards is to establish standard for the planning, design, and construction of new roads and for road improvements within Pitkin County. In general these standards are driven by state and national standards as delineated by the Colorado Department of Transportation and the American Association of State Highway Officials.

Variance to these standards may be made by the County Engineer with consultation with local emergency service provider.

A: Design Traffic Volumes

When requested by Community Development or the County Engineer, developers, landowners, etc shall supply a full traffic analysis analyzing current and future traffic generated by such a development.

Manuals such as the Highway Capacity Manual, International Traffic Engineers (ITE) Trip Generation Handbook, and ITE Traffic Engineering Manual may be necessary. Large and commercial developments or ones generating amounts of traffic to create greater parking needs, which will create significant traffic volumes, or that may affect traffic patterns shall perform a traffic analysis.

Trip Reductions: When applicable, the applicant can use trip reduction factors as defined in the ITE Trip Generation Handbook.

Traffic and Parking Management: When a traffic analysis is required, traffic volumes shall be addressed in both terms of average daily traffic and peak hour volumes. In places where there a large seasonal swings in volume, the peak season shall be used in analysis. Future year analysis and specifics regarding how traffic will be managed shall be included in analysis. Parking management shall be addressed in this plan with total parking needs and capacity clearly defined. For all construction projects within Pitkin County that meet certain thresholds, as outlined in the Construction Management Plan (CMP), shall conform to the CMP.

B: Route Corridor and Terrain Factors: The entire route corridor of a road shall be considered when establishing the terrain factor. The Colorado Department of Transportation considers most County roads in Pitkin County as being in the “Mountainous Terrain” category, however, some roads, such as subdivision roads, may fall entirely in the “Level Terrain” category.

Level Terrain is that condition where road sight distances are generally longer and could be made without construction difficulty or major expense.

Rolling Terrain is that condition where the natural slopes consistently rise above and fall below the road grade line and where occasional steep slopes offer restriction to normal highway horizontal and vertical alignment.

Mountainous Terrain is a condition where longitudinal and transverse changes in the elevation of the ground with respect to the road are abrupt and where the roadbed is obtained by frequent benching or side hill excavation. Route Corridor should take into account local landforms and vegetation. Where applicable such as in urban settings, landscaping shall be completed complying with guidance from applicable sections of American Association of State Highway Transportation Officials (AASHTO) A Policy on Geometric Design of Highways and Streets and Roadside Design Guide and conform with Pitkin County’s Revegetation Guidelines.

C: Design Speed: Geometric design features shall be consistent with a design speed selected as appropriate for traffic volumes and conditions.

Low design speeds are generally acceptable for roads with winding alignments in rolling or mountainous terrain or where environmental conditions dictate.

High design speeds are generally acceptable for roads in level terrain or where other environmental conditions are favorable.

It is necessary for designers to recognize conditions where actual operating speeds typically may exceed the design speed; for example, terrain conditions may limit the overall design speed of a roadway section to a select speed but several long tangents may encourage higher speeds. An older facility, like most in Pitkin County may have a highway curve that has a design speed below the general operating speed of the highway. When this occurs, the common practice is to use an advisory speed sign to warn drivers of the lower safe operating speed on the curve. On new and reconstructed facilities, the curve should be designed to appropriate standards as dictated by the AASHTO's *A Policy on Geometric Design of Highways and Streets* (most recent version), the *Colorado Department of Transportation's Design Guide*, or as determined to be prudent by the County Engineer given local topography and other environmental considerations

D: Grades: The length and steepness of grades directly affect the operational characteristics of any road. Recommended maximum grades will be dictated by associated road type (local, arterial, etc) and figures as dictated by the American Association of State Highway and Transportation Officials *A Policy on Geometric Design of Highways and Streets* (most recent version) and the *Colorado Department of Transportation's Design Guide*. These values are not to generally exceed 12% grade. In exceptional circumstances where local topography or other environmental considerations render compliance with the foregoing standards impractical, the County Engineer may approve a variance from said standards when a professional engineer registered in the State of Colorado stamps plans incorporating the variance and warrants that the roadway constructed out of compliance with said standards is nonetheless safe and suitable for its intended purpose and use by the public.

E: Sight Distance: Sight distances, including but not limited to stopping sight distance, passing sight distance, and decision sight distance shall be determined by equations as dictated by the American Association of State Highway and Transportation Officials *A Policy on Geometric Design of Highways and Streets* (most recent version), the *Colorado Department of Transportation's Design Guide*. In exceptional circumstances where local topography or other environmental considerations render compliance with the foregoing standards impractical, the County Engineer may approve a variance from said standards when a professional engineer

registered in the State of Colorado stamps plans incorporating the variance and warrants that the roadway constructed out of compliance with said standards is nonetheless safe and suitable for its intended purpose and use by the public. Type of curvature (vertical sag, vertical crest, horizontal, etc.) shall be considered along with distance of any sight obstruction from the roadway.

F: Horizontal Alignment: Horizontal alignment should provide for safe and continuous operation of vehicles at a uniform design speed for substantial lengths of roadway. Design considerations should be addressed as outlined in the American Association of State Highway and Transportation Officials *A Policy on Geometric Design of Highways and Streets* (most recent version), the *Colorado Department of Transportation's Design Guide*, or as figured prudent by the County Engineer given local topography and other environmental considerations.

G: Road Surface Classification: Road surfaces are classified as follows:

Low: Low type surfaces are those with surface treated earth and those with loose surfaces such as gravel.

Intermediate: Intermediate type pavements are those designed to retain smooth riding qualities and good non-skid properties in all weather under light loads and low traffic volumes.

High: High type pavements are those that retain smooth riding qualities and good non-skid properties in all weather under heavy traffic volumes and loading with little maintenance.

H: Traveled Way Crown: Design of the pavement crown is often a compromise between the need for reasonably steep cross slopes for drainage and relatively flat cross slopes for driver comfort. Pavement super-elevations shall be determined by Section 1.22. Generally, a minimum cross slope of 1.5% should be used. However, further guidance can be found in CDOT Standard Plans – M & S Standards, *A Policy on Geometric Design of Highways and Streets* (most recent version), and the *Colorado Department of Transportation's Design Guide*. Additionally, a maximum cross slope should generally not exceed 4%.

I: Super-Elevation: CDOT Standard Plans – M & S Standards, *A Policy on Geometric Design of Highways and Streets* (most recent version), and the *Colorado Department of Transportation's Design Guide* should be used in determining rates of super-elevation (both maximum and for any specific curve).

J: Number of Lanes: The number of lanes should be sufficient to accommodate the design volume. The majority of roads in Pitkin County will be two lanes. Where more than two lanes are warranted to accommodate design volumes, determinations of design are to be made as indicated in CDOT

Standard Plans – M & S Standards, A Policy on Geometric Design of Highways and Streets (most recent version), and the Colorado Department of Transportation's Design Guide. Under special conditions as approved by the Planning and Zoning Commission and the Board of County Commissioners, sections of one lane road may be approved if the entire road falls under the "Country Access" standard. Roads with one-lane sections will not be accepted by the County for right-of-way or maintenance and must meet the following:

1. That section which is one lane must have its entire length visible from both ends of the two-lane portion.
2. All "Country Access" standards for surface sight distance, curve radii, shoulder, ditch, etc., must be met. Minimum width of a one-lane road shall be 10.0 feet.
3. The driving surface will be at least 10 feet wide with turnouts at 500+ foot intervals. Turnouts will be 10 feet wide and 50 feet long.
4. Guardrail will be installed along the entire substandard section, except in areas of flat, open terrain where no roadside obstacles or steep hillsides exist. Areas to be without guardrail must be proposed by the applicant, designed by a registered professional engineer, and approved by the County Engineer or his representative.

These standards (along with section 1.35) shall only be used with prior approval from the County Engineer and Community Development Designee.

K: **Traffic Calming:** Traffic Calming may be considered for area in residential neighborhoods, near schools, or a otherwise determined by Public Works Staff. Public requests for traffic calming shall be reviewed on a case-by-case basis. Individual requests shall come from an HOA, Caucus or other neighborhood body.

L. Width of Surfacing, Shoulder and Roadway: The dimensions of a typical cross section depend upon a number of features that vary with the type of roadway. Default geometric design standards should be identified with reference to *A Policy on Geometric Design of Highways and Streets* (most recent version), the *Colorado Department of Transportation's Design Guide* and any other applicable standards as determined by the County. Class of roadway, local topography and environment shall all be included in design decisions. Roads should generally not be less than 20 feet in width, unless local topography or other constraints dictate otherwise.

M: Bicycle Lanes: Bicycle lanes should be constructed in accordance with the Standards and Specifications contained in the Open Space and Trails Management and Design Guidelines (available at the Open Space & Trails Department) or the American Association of State Highway and Transportation Officials Guide for the Development of Bicycle Facilities (available at the Open Space & Trails Department), as determined most appropriate by the Open Space or Public Works designee whenever reasonable. Because of the extremes of topography in Pitkin County, there are cases where these standards may not be met.

N: Guardrail: Guardrail should be used on roads with steep side hills and cuts, on bridge approaches and along switchbacks. In mountainous terrain with a minimum 2-foot shoulder, the graded width of the shoulder in cuts may be decreased 2 feet if guardrail is installed. Guardrail shall not be closer than 2 feet to the driving surface. Guardrails shall be of a non-shiny material and shall meet the standards in the latest

edition of the Colorado Department of Transportation M- Standards. Further design standards can be found in the AASHTO *Roadside Design Guide* and other applicable standard setting publications.

O: Switchbacks: Switchbacks are not considered a good roadway design solution for gaining elevation. When used, no switchback shall have a tangent less than 1/4 mile from the last switchback. This is especially important on hillsides steeper than 20% where visually switchbacks create a heavy impact. On horizontal curves less than 150 feet, grades on switchbacks shall be reduced to zero percent at the apex of the vertical curve. (Note: The horizontal curve shall not begin prior to the end of the vertical curve for these purposes).

P: Right-Of-Way Width: The procurement of right-of-way to widths that will accommodate construction, utilities, adequate drainage and proper maintenance of the road is the most important aspect of the overall design. Wide rights-of-way permit the construction of gentle slopes, resulting in more safety and easier maintenance. The procurement of sufficient rights-of-way at the time of initial construction or improvement permits the widening of the roadway at reasonable costs as traffic increases.

The minimum right-of-way for all new roads shall be thirty feet (30'), however sixty feet (60') is preferred.

P: Vertical Clearance: Vertical clearance at underpasses, power lines, streetlights, etc., shall be at least twenty feet (20') over the entire roadway width, including shoulders.

Q: Horizontal Clearances to Obstructions: Horizontal clear zones shall be dictated by all applicable standards as set forth in the AASHTO *Roadside Design Guide*, *A Policy on Geometric Design of Highways and Streets* (most recent version), and the *Colorado Department of Transportation's Design Guide* and any other applicable standards. Because of the extreme topography in Pitkin County, there may be instances where these standards are not able to be met.

R: Intersection Design: The location of intersections should be carefully selected to avoid steep approach grades and to ensure that there is adequate approach sight distance to the intersection. An intersection should not be located on a short crest vertical curve, just beyond a short crest vertical curve, or on a sharp horizontal curve. Where there is no practical alternate to such a location, the approach sight distance on each leg should be flattened and horizontal or vertical curves lengthened to provide additional sight distance. There should be sufficient sight distance to permit a passenger vehicle on the minor leg of the intersection to cross the traveled way without requiring the through approaching traffic to slow down. As a general rule, there should be a minimum of 6 to 7 seconds available to the driver crossing the through lanes. On this basis, the suggested corner sight distance for each design speed would be as calculated using the site triangle method. Minimum sight distances shall be calculated using applicable standards from *A Policy on Geometric Design of Highways and Streets* (most recent version), and the *Colorado Department of Transportation's Design Guide*.

Intersections should be designed with a corner radius of the pavement or surfacing that is

adequate for the larger vehicles anticipated; usually, a minimum edge radius of 50 feet is applicable. Where turning volumes are significant, consideration should be given to speed- change lanes and channelization. Intersection legs that will operate under STOP control preferably should be at right angles.

9.12.190: MODIFICATION OF ROAD CLASSIFICATIONS AND DESIGN STANDARDS

- A. In certain circumstances it may make sense to allow for modifications to the design standards to allow for reasonable variances which provide significant benefits without decreasing safety and causing greater environmental impacts.
- B. An applicant other than the County who wishes to modify the design standards shall submit in writing, by a registered professional engineer, a proposal outlining what standards are wished to be waived, including an explanation why those modifications must take place. The proposal shall also include an analysis of the cost and benefits of compliance with the standards as well as the cost and benefits of the proposed modifications to the standards. Any such request shall be reviewed based on the following criteria:
 - 1. Shall be in harmony and compatible with the character of the surrounding areas, neighborhood and zoning;
 - 2. Shall be consistent with the RMMP;
 - 3. Shall not result in an over-intensive use of land;
 - 4. Shall not have adverse effect on community capital improvement programs;
 - 5. Shall not require a level of community facilities and services greater than that which is available;
 - 6. Shall not result in undue traffic congestion or traffic hazards;
 - 7. Shall not cause significant air, water, or noise pollution;
 - 8. Shall be adequately landscaped, buffered, and screened;
 - 9. Shall not otherwise be detrimental to the health, safety, or welfare of the present or future residents or the public;
 - 10. Shall not have significant environmental and visual impacts;
 - 11. Shall not compromise emergency response.

The County Engineer and the Community Development Director shall have the authority to approve modifications to driveway standards unless such a modification is in association with other Land Use Review applications which require Planning Commission or Board of County Commissioner approval. All other requests for modifications shall be submitted to the County Engineer. The County Engineer and the Community Development Director shall review the request and make recommendations to the Board of County Commissioners, and modifications shall be authorized by resolution of the Board of County Commissioners.

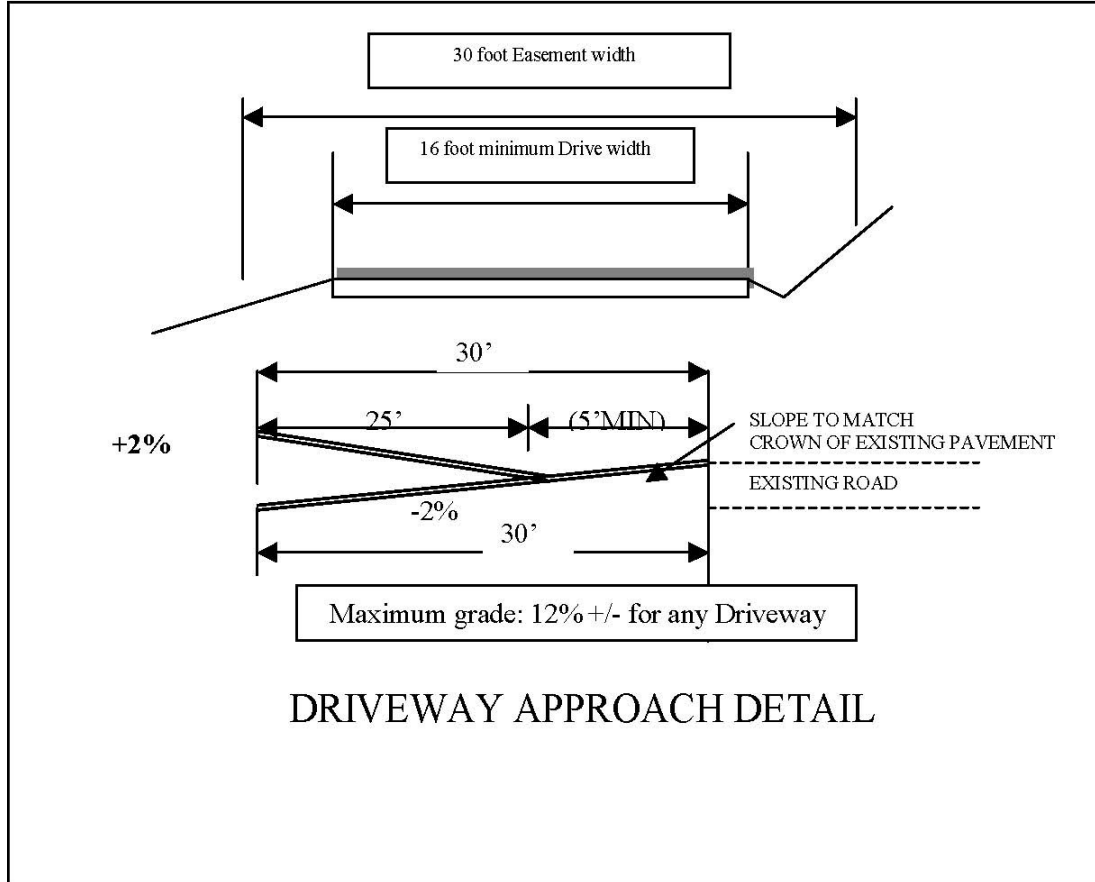
9.12.200: ROAD DEVELOPMENT IN THE FLOODPLAIN

- A. A Floodplain Development Permit and an Access Development Permit shall be required submittals for all retaining structures, driveways or roads in the 100-year Floodplain.
- B. All roads shall be constructed above the base flood elevation. The constructed fill in the floodplain will have sufficient drainage devices so as to pass the 100-year flood with minimal impoundment. The development within the floodplain shall be consistent with the Pitkin County Land Use Code, 7-20-40.
- C. Driveways may be overtopped by a ten-year flood or greater if all floodwaters have a velocity of 3 f.p.s. or less (3 f.p.s. or less is considered standing water with little ability to erode).

9.12.210: ACCESS DESIGN STANDARDS

Accesses are roads that generally serve fewer than 5 residential units and have a low volume of traffic. Roads built to the access standards will not be eligible for inclusion or acceptance into the County Road System. New accesses or ones with major modifications shall be designed by a registered, professional Engineer as outlined in the ACCESS PERMIT section of this RMMP.

Table 1.34
Minimum Access Standards



Width	16'	Unless one-lane as per applicable standards
No. of Lanes	2	Same as above
Max. % of Grade	12%	Variances may be approved due to conditions and with consultation of local emergency response
Approach Grade	2%	Grade required for 30' approach to intersection (See typical section)
Minimum curve radius	50' @ C/L	Radius at centerline of drive
Pullouts (10'x50' minimum)	500' +/-	Recommended distance, may be greater with approval from Fire Marshall
Surface Treatment	Minimum graded dirt	All weather gravel surface

9.12.220: DESIGN IN THE FLOODPLAIN

The design of all roads, culverts, and bridges shall accommodate a 100-year flood event.

- A. Applicant shall submit a Floodplain Development Permit and an Access Driveway Development Permit for all retaining structures, driveways, or roads in the 100- year Floodplain.
- B. All roads shall be constructed above the base flood elevation. The constructed fill in the floodplain will have sufficient drainage devices so as to pass the 100-year flood with minimal impoundment. The development within the floodplain shall be consistent with the Pitkin County Land Use Code, Article 3, Section 3-80-40.
- C. Driveways may be overtopped by a ten-year flood or greater if all floodwaters have a velocity of 3 f.p.s. or less (3 f.p.s. or less is considered standing water with little ability to erode).

9.12.230: CULVERT DESIGN

Culverts shall be designed in context to the flows they are expected to carry, and where they are conveying water.

Traffic Volume (vpd)	Recurrence Interval for Design
>3000	50
3000> traffic >500	10
500>	10

9.12.240: BRIDGES

A: Existing Bridges: Since highway geometric and roadway improvements encourage higher speeds and attract larger vehicles to the highway, it is important that existing substandard structures also be improved correspondingly. Because of their high cost, reasonably adequate bridges and culverts that meet tolerable criteria should be retained.

Where an existing highway is to be reconstructed, an existing bridge which fits the proposed alignment and profile may remain in place when its structural capacity in terms of design loading and clear roadway width are at least equal to the values shown for the applicable traffic volumes under clear roadway widths for new and reconstructed bridges.

B: New or Rebuilt Bridge Design: New or rebuild bridges shall be sized to pass the 100-year flood. In determining bridge design the following formula should be considered:

$P(Q)$ =Probability of the flow being equaled or exceeded from withersnowmelt or rainfall flooding

P (QS) = Probability of that flow being equaled or exceeded due to snow melt or rainfall flooding.

P (QR) = Probability of that flow being equaled or exceeded due to rainfall flooding.

A minimum of 18" of freeboard shall be allowed. It is recommended that the design engineer consider an additional 12" to 18" for freeboard to pass debris of the 100-year flood. The minimum design loading for all new and rebuild bridges shall be HL93. A registered professional engineer shall design all bridges. A Floodplain Development Permit or an Access Driveway Development Permit is required for all bridge construction or rebuilding done outside the County Right of Way. AASHTO and CDOT standards shall be used for all bridge design within Pitkin County. All design criteria is subject to review by the County Engineer and possibly the Pitkin County Community Development department. Persons wishing to install a bridge within Pitkin County on a private road or driveway shall submit an Access Control Permit. All bridge plans shall be stamped by a Professional Engineer registered in the State of Colorado.

Notes:

- (1) Where the approach roadway is surfaced for the full crown width, that surfaced width should be carried across structures.
- (2) On highways with a current ADT over 1,000, bridges with a total length over 100 feet may be constructed with a minimum clear roadway width of the surfacing width plus six feet.

9.12.250: ROAD STANDARDS FOR ROADS AND ACCESSES LOCATED IN AREAS ZONED RURAL AND REMOTE

The following road standards have been developed for access to County approved development in areas zoned rural and remote. The goal of the standards is to allow roads to be constructed in remote areas with the least amount of environmental impact. The standards have been developed in conjunction with the United States Forest Service (USFS) and their road standards developed for private roads constructed on National Forest System Lands.

These standards shall be as follows:

A: General: Plans for construction of the road shall be signed and/or stamped by a Colorado registered professional engineer. The plans should include: topographical site plan, road cross-section, drainage structures, retainage walls and bridge structures.

B: Design Criteria: These standards (along with section 1.23) shall only be used with prior approval from the Community Development Designee.

C. Design Speed: 10 miles per hour

D. Drainage: Roads with grades 8% and less should maintain an out-slope of 2% and utilize rolling dips and/or culverts. Roads with grades exceeding 8% should maintain an out-slope of 2% and utilize culverts or other drainage structures. An energy dissipater must be used in most soil conditions with grades exceeding 8%. Approach to an existing County road shall be constructed to slope away from the existing County road at a 2 % grade for at least 5 feet.

9.12.260: PERMITTING REQUIREMENTS

Appropriate Permits as identified in this RMMP are required for any and all work done within County rights-of-way or other property by persons or entities other than Pitkin County. Permits must be made available to County personnel at the work site on demand. Permits are also required for certain actions addressed within this RMMP that may affect County roads or rights of way. The permitting requirements contained in this RMMP do not apply to work done by Pitkin County, including without limitation its departments, agents, consultants, and contractors.

In general, new utilities, irrigation features, or structures in the right of way shall be covered by the revocable right of way permit. This permit will be a license agreement between the owner and the County.

Right of Way Work Permit shall be used to allow traffic control operations in the right of way in order to perform work not associated with any new roadway/roadside appurtenance.

Referral to the Board of County Commissioners (BOCC):

- (1) In lieu of making an administrative decision, the Public Works Designee may refer any application authorized for administrative approval to the BOCC as determined by the Public Works Designee for decision pursuant to the following criteria if the County Engineer or Public Works Designee determined that:
 - Work zones may present significant impact to traffic; or
 - Work zones may be present for a long period of time; or
 - Multiple alternatives may be needed to be publicly vetted; or
 - The application raises a significant public controversy on which numerous parties beyond the owners of adjacent properties may want to offer testimony; or
 - The applicant has a disagreement with the Engineering Department regarding a condition of approval.

Once an application is referred to the BOCC, a work session will be set. Staff will present a synopsis of the project then the applicant will have an opportunity to present its proposal to the BOCC. The BOCC will then direct Staff in how to finish the processing of the permit application. In the case of multiple alignments or options exist, Staff may present a preferred alternative

Permit application fees will double in cost for any work that requires more than six (6) site visits during the duration of the project and will double in cost for any application referred to the BOCC.

9.12.270: ACCESS PERMIT

A: Purpose: The purpose of these requirements is to establish engineering, inspection and permitting policies by which an approved access may be allowed.

B: Permit Required: No person shall begin work on a proposed access, or make substantial improvements to an existing access or private road, except as specifically exempt in subsections A-C, below, without first obtaining an approved Access Permit from the County. A separate permit will be required for each access point proposed. An Access Permit shall be required even in cases where the access does not directly enter a County road. This is to assure compliance with County standards.

The following activities are exempt and do not require an Access Permit:

1. Minor or insubstantial maintenance to an existing legal access. Such work may include: grading, oiling or otherwise maintaining the existing driving surface, cleaning road side ditches or cross culverts, and placing or repairing fencing or gates that are required as a part of the access. What constitutes minor or insubstantial maintenance shall be determined on a case-by-case basis and will depend on the proposed work's impact (including both physical impacts and impacts on traffic volume, safety, and other matters affecting the proper functioning of a County asset) on County rights-of-way or other affected assets.
2. Any work required within an existing access to place underground utilities. (Note that an Earthmoving Permit may be required if threshold volumes of excavated materials are exceeded).
3. Any work required within an existing access to repair or maintain irrigation ditches or impoundments.

The following activities may obtain approval through a Temporary Access Permit:

1. Any access needed temporarily for non-residential purposes (e.g., drill for water, access to show property, construction activities) may qualify for a temporary access permit. TEMPORARY ACCESS PERMITS SHALL ONLY BE GRANTED FOR AN ACCESS PREVIOUSLY APPROVED IN SUBDIVISION OR SITE PLAN REVIEW. Temporary Access Permit applications shall be submitted to the County Community Development Department for review and approval prior to execution by Public Works. An access permitted through a Temporary Access Permit may only be in place for a limited time

not to exceed 6 months from issuance of permit and the access site must be reclaimed and returned to its original condition when the Temporary Access Permit expires. If the applicant desires to convert a temporary access into a permanent access, a normal Access Development Permit must be obtained before a Building Permit will issue. All permanent access regulations also apply to Temporary Access Permits. Under no circumstances shall a Temporary Access Permit be issued for an access providing service to a residential property; such use requires prior issuance of a normal Access Permit.

C: Access Permit Application Process: The Pitkin County Access Permit application is available at the Community Development Office, the Public Works Office or online at www.pitkincounty.com. Completed applications, along with relevant attachments, shall be submitted first to the Community Development Department for review for compliance with the Pitkin County Land Use Code and conditions of prior approvals. The application will then be forwarded to the Public Works Department for approval.

D: Plans and Specifications: All accesses must conform to the design standards set forth in this RMMP (see sections 1.14 through 1.35).

Applicants are advised to meet with County Staff prior to submittal to assure the site is compatible with all applicable land use and development standards. Two (2) sets of complete plans and specifications demonstrating compliance with the County's design standards shall be submitted with the Access Permit Application. These plans and specifications shall be prepared by a Registered Professional Engineer and shall show the following:

1. All applicable land use approvals and plats
2. Site vicinity map
3. Site plan showing the location of the access on the property and the road to be accessed. The site plan shall show all existing and proposed 2 foot contours.
4. Access plan and profile
5. Drainage and erosion control plan addressing proposed access and county or private road
6. Construction Management Plan
7. Revegetation Plan
8. Approval from the Fire Marshall
9. Map or letters from utility companies detailing utility placement in the area proposed for access
10. Parcel and/or ownership maps and applicable easements (and, if necessary, authorization pursuant to § 1.39.06)
11. Signing and striping plans (if applicable)
12. Traffic Control Plan and applicable methods of handling traffic (if applicable)

E: Supplemental Reports: Supplemental reports and data (geology, soils, traffic impacts, existing traffic counts, etc.) may be required depending on the nature of the site and the scope of the proposed access.

Supplemental reports must be prepared by qualified professionals in the relevant field. Recommendations included in such reports approved by the County Engineer and Community

Development may be incorporated into the access plan and made a condition of approval.

F: Authorization: The applicant shall submit proof that it has authority or permission to conduct work required to place the proposed access on the site(s) proposed. This documentation shall be submitted with the application for permit. The approval of an access development permit does not imply or grant any further development rights.

G: Hazardous or Harmful Conditions: Whenever the County determines that an existing access has become a hazard to public health, safety or welfare, the owner of the property utilizing the access, upon receipt of written notice from the County shall, within the period specified therein, repair or eliminate such access so as to eliminate the hazard and be in conformance with the requirements contained herein. This shall be a condition of all permits and shall constitute a continuing obligation that runs with the land.

The developer of any new or improved access point shall provide acceleration and/or deceleration lanes or left turn lanes when the volume of traffic entering or leaving the access causes significant impacts to the capacity or safety of traffic on the main line roadway or may cause increases in traffic delays and congestion. All improvements shall be constructed to applicable design standards identified in this RMMP.

H: Compliance with Plans and Requirements: All permits issued hereunder shall be deemed as a matter of law to require the applicant (including without limitation all of his or her agents, contractors or employees of any kind) to carry out the proposed work in compliance with all applicable statutory and regulatory requirements, and in full accordance with the plans and specifications approved in connection with the Access Permit. If the County Engineer determines that actual conditions present on-site do not conform to those stated in the permit or the approved plans or specifications, the County may issue a stop-work order until the applicant obtains approval for a revised access plan that conforms to the existing conditions and satisfies all applicable requirements.

Modifications of previously-approved Access Permits or plans shall not be valid until approved in writing by the County Engineer. Bonds or letters of credit may be required to secure these obligations before an Access Permit or modification thereto will be issued.

Approvals which affect basic tract design or land use may require approval by the County Community Development Department in addition to approvals required by Public Works.

I: Protection of Utilities: During work on the access, the applicant shall be responsible for the prevention of damage to public or private utilities or services. This responsibility is not confined to the limits of the work.

J: Protection of Adjacent Property: The applicant is responsible for the prevention of damage to adjacent property, and no person shall excavate or fill on land sufficiently close to the property line to endanger any adjoining public street or any adjacent property.

K: Revegetation: The applicant shall be responsible for complete revegetation of the access site. Said revegetation shall conform to the adopted Pitkin County Revegetation Guidelines. Unless otherwise approved by a Public Works designee, revegetation of the site shall be accomplished by reseeding with a native grass mix comparable to those described within the Pitkin County Revegetation Guidelines. The applicant may be required to submit to the Public Works designee a signed statement certifying that the seed furnished is from a lot that has been tested by a recognized laboratory for seed testing within six (6) months prior to the date of delivery. Seed which has become wet, moldy, or otherwise damaged in transit or in storage will not be acceptable. Seed types and amount of pure live seed required per acre shall be in conformance with the surrounding native grasses. The Public Works designee may review the proposed seed mix or its compatibility with the surrounding vegetation and approve it before use.

The applicant shall also be responsible for assuring that the areas to be revegetated will grow and take root to the soils on the disturbed areas. This will include any watering and noxious weed control needed to insure or otherwise promote this growth. To guarantee the revegetation, the developer will be required to provide a bond, letter of credit, or other financial assurance, which will be held for a minimum of two (2) years, as more fully described in Section 1.39.14. The assurance monies will be equal to the costs of revegetation, and will be returned to the applicant when it is determined by the Pitkin County designee that the revegetation of the disturbed areas at the access site has been successfully completed.

If within a two-year period from the revegetation effort a successful stand of native grasses at the access site has not been accomplished, the County may, at its discretion, retain any or all of the assurance monies necessary in order to attempt revegetation of the grounds. A successful stand of native grasses is defined as being at a 75% germination rate and/or having vegetation cover equal to or greater than the surrounding vegetation cover. The success of the revegetation at the access site will be measured at the end of the summer growing season by the Public Works designee who will approve or reject it between that time and the end of the two-year assurance period.

L: Access Permit Limitations and Conditions:

1. General. The issuance of an Access Permit shall constitute an authorization for only that work (no more and no less) which is described or illustrated on the approved plan or application for the permit. The issuance of other required permits to the applicant shall not relieve it of the responsibility for securing an Access Permit.
2. Jurisdiction of Other Agencies. Permits issued shall not relieve the applicant of the responsibility for securing required permits for work to be done under regulation of any other code, department, or governing agency.
3. Time Limits. All of the work authorized by the permit shall be fully performed and completed within the time limit specified. If no time limit is specified, the work shall be completed within 1 year after the date the permit is issued. If the work cannot be completed within the specified time, a request for an extension of time setting forth the reasons for the requested extension shall be presented in writing for review and approval by Community Development and the County Engineer.
4. Storm Drainage. All persons performing any work under an Access Development Permit shall put into effect all necessary precautions and conform to all applicable

standards to prevent storm drainage.

5. Traffic Control Plan. In the case of any work that may affect the traveling public, the applicant shall submit a traffic control plan that complies with the standards set forth by this RMMP, the most recent applicable Colorado Department of Transportation standards, and the latest edition of the Manual of Uniform Traffic Control Devices.

M: Denial of Access Permit: A permit will not be issued in any case where the work proposed by the applicant will not comply with the requirements contained herein, or if the proposed work is not consistent with land use or development policies currently adopted by the County. If it can be shown to the satisfaction of the County that compliance with requirements and conditions can be obtained by the construction of retaining structures, drainage devices, or by other means, the permit may be issued with the condition that such work be performed. As a general policy, the County does not allow more than one access per property.

N: Financial Security and Bonding: Letters of credit or other financial assurances may be required by the County for work conducted under an approved Access Permit. This financial assurance will be required where, in the discretion of the County Engineer or designee, it would be necessary to guarantee enforcement of applicable requirements, including landscaping or earthmoving on steep slopes. Payment and Performance Bond, letter of credit or cash payment for an amount set by the County Engineer or designee representative shall be provided and secured unto the County, and, if the work authorized by the permit is not completed as specified, any security shall be in default and the County shall recover on the security, provided notice of non-compliance is given in writing to the developer by the County Engineer or designee. The surety executing any bond or deposit shall continue to be firmly bound under a continuing obligation for the payment of all necessary costs and expenses that may be incurred or expended by Pitkin County in causing any unsatisfactory work to be corrected or any unfinished work to be completed. In the event of default, the County shall have the right to go onto the premises to perform the required work. In the case of a cash deposit, said deposit or any unused portion thereof shall be refunded. Other securities other than a bond, such as cash payment or letters of credit, must obtain approval by the County Attorney's Office prior to permit issuance.

O: Access Construction Standards and Specifications: Unless another section of this RMMP provides otherwise, the most recent edition of the Colorado Department of Transportation's *Standard Specifications for Road and Bridge Construction* shall govern all Access construction practices. Variations from the CDOT *Standard Specifications* may be granted by the County Engineer and Community Development when site-specific conditions make application of the *Standard Specifications* impractical or unnecessary. The determination of whether or not a variance is justified shall rest in the sound discretion of the County Engineer and Community Development based on all factors present at the site. Such a variance shall only be granted through a signed writing executed by the County Engineer.

P: Supervised Inspection Required: All Access work other than routine maintenance shall be performed under the supervision of a qualified and registered professional civil engineer at the Applicant's expense and shall be designated as "supervised work". For supervised work, it shall be the responsibility of the

Applicant's engineer to supervise and coordinate all site inspection and testing during working operations. If the engineer finds that the work is not being done in accordance with either the applicable Access Permit or accepted construction practices, he/she shall immediately send a written notice of the nonconformity and of the recommended corrective measures to the person in charge of the work and to the County Engineer or designee.

Q: Regular Access Work Inspection: The County Engineer or designee shall have the right to enter the premises to inspect work undertaken pursuant to an Access Permit at any time. Inspection may include but need not be limited to preparation of surface for fills, retaining walls, drainage devices, and any and all other matters set forth in the Access Permit or the applicable plans and specifications for the work (including, without limitation, the CDOT *Standard Specifications*).

The County Engineer or designee may require soil borings, compaction or other tests at the applicant's expense if an inspection discloses that such tests may be necessary to ensure public health, safety or welfare. Tests shall be taken at locations designated by the County Engineer or designee and shall be performed by an independent testing firm approved by the County. Certified copies of the test data are to be furnished upon request to the County Engineer or designee. The applicant shall inform the County Engineer or designee at least one (1) day in advance of each pre-scheduled inspection regarding the status of the work and its compliance with the applicable Access Permit and all applicable plans and specifications. Final approval of work conducted pursuant to an Access Permit shall not be given until all work, including installation of all drainage structures and their protective devices, has been satisfactorily completed in accordance with all Permit requirements and all applicable plans and specifications, and all required data or reports have been submitted.

R: Final Reports: Upon completion of the work, the following reports or data may be required:

1. A report from the applicant's engineer certifying that all work has been completed in conformance with the approved plans and applicable requirements, accompanied by "as-built" plans of the completed work
2. Soils and/or geology reports
3. Cross-sections
4. Other reports as required depending on applicable site conditions

The release of any bond or security posted by the applicant may be conditioned upon the submittal of the final report or reports.

S: Liability: Neither the issuance of a permit nor compliance with the provisions hereof or with any conditions imposed in the permit issued hereunder shall relieve the applicant from the full responsibility for any damage whatsoever to other persons or property, nor impose any liability upon any official, appointee, or employee of Pitkin County for damage to persons or property.

T: Fee Schedule: (See Appendix A)

9.12.280: RIGHT-OF-WAY WORK PERMITS

A: Purpose: The purpose of these requirements is to establish engineering, inspection and permitting policies governing Right-of-Way Work Permits. A Right-of-Way Work Permit confers a limited license to conduct activities within a County-owned asset.

B: Permit Required: Any person, business, utility, or agency, including without limitation contractors, developers, owners, and governmental agencies (other than Pitkin County itself and all of its departments, agents, and instrumentalities), who proposes to perform work within any County property or right-of-way (hereinafter, “Applicant”), must first obtain a Right-of-Way Work Permit from the Public Works Department in accordance with the requirements of this section 1.40. “County property or right-of-way” as used herein includes, without limitation, roads and their surrounding rights-of-way, bridges, trails and their surrounding rights-of-way, and any other County-owned land or open space of any kind.

A Right-of-Way Work Permit application must be submitted to Public Works at least 7 business days prior to the planned commencement of construction; Applicants are advised, however, to submit applications well in advance of scheduled work as County workload or the necessity for certain studies may preclude issuance of permits within a 7-day time frame. The County reserves the right to issue timelines on permits if work is not completed.

Right-of-Way Work Permit applications are available at Public Works or online at www.pitkincounty.com. Completed applications shall be submitted to the Public Works Department, 76 Service Center Road, Aspen, CO, 81611.

C: Application Contents: An application for a Right-of Way Work Permit shall include, at a minimum, documentation addressing the following:

1. All required land-use approvals (if applicable), including copies of relevant approval documents.
2. Site vicinity map and site plan accurately detailing the location of the work.
3. Construction plans and specifications. All plans shall conform to the design standards set forth in this RMMP.
4. Schedule of proposed work.
5. Drainage and erosion control plan addressing proposed work.
6. Construction Management Plan (if work is in conjunction with a development permit issued by Community Development).
7. Revegetation Plan.
8. Map or letters from utility companies detailing utility placement (if applicable).
9. Signing and striping plans (if applicable).
10. Traffic Control Plan and applicable methods of handling traffic (if applicable).
11. Confirmation that asphalt patches shall conform to standards as per drawings in the Appendix A.

D: General Policies: Right-of-Way work shall not create safety hazards or maintenance problems; render portions of rights-of-way infeasible for future road improvement; obstruct major floodways; or otherwise impair in any long-term way the affected County Asset. Lateral installations shall be placed outside the roadbed within the "borrow pit" area and transverse installations shall be "jacked" or bored under the road in lieu of trenching whenever possible.

1. Utility Plans. All utilities shall be installed in accordance with plans and specifications previously approved by the utility owner. Plans for main installations must bear the name, seal, and signature of a registered engineer responsible for their preparation where applicable. The alignment of all utilities within a County right-of-way is subject to approval by the Public Works designee. No permit shall be issued for installations partially on private property without proof of an established easement available for such purposes.
2. Underground Utilities. All road level accesses (e.g., manholes, vaults) to utilities, where permitted, shall be of heavy-duty construction, capable of safely supporting anticipated maintenance equipment and vehicular traffic, and shall conform to the finished grade of the road. All underground utilities within public right-of way shall be placed at least 24 inches below ground or culvert and suitably marked with a durable marker post showing the depth and offset at least every 1000 feet and at points, where the installation first enters and leaves the right-of-way.
3. Water Table. Where the possibility exists of lowering the surrounding water table and thereby adversely affecting wells and vegetation dependent on the water table elevation in the area, suitable seep plugs shall be installed in the trench at a minimum of 500-foot intervals or as necessary to ensure that the water table will not be harmed. Appropriate engineering reports may be required to demonstrate that the water table will not be harmed by relevant work.
4. Above-Ground Utilities. All above ground utilities shall be located and installed so as not to cause unnecessary obstruction to pedestrian and vehicular traffic or damage to the utility itself that could be harmful to the public. The minimum overhead clearance shall be 20 feet. Poles and/or other aboveground structures shall be placed to neither be in conflict with a pedestrian walkway nor be set less than 10 feet from the shoulder of any County road (or such greater distance as provided for by the current Roadside Design Guide). In no case will a pole be permitted within 11 feet of the traveled way.
5. Utilities in Major Floodways. All utilities within or adjacent to major floodways must be located and installed in a manner that will prevent future scenic, environmental, or property damage, including without limitation land erosion, water pollution, or flood diversions. Work within any floodway requires a Floodplain Development Permit along with a Right-Of-Way Work Permit.

E: Road Closure: In general, road closures are not permitted unless justified on the basis of overall benefit to the general public. When road closures are permitted, the applicant must adhere to the following procedures.

1. Closure must be explicitly specified on the approved permit.
2. Roads may be closed only between the hours of 9:00 a.m. and 3:00p.m.
3. The roadway must be capable of being re-opened for emergency equipment at all times during construction. Verify the road closures specified on the permit with the Public Works designee at least one week in advance of closure.
4. Notify the appropriate fire protection district, hospital and ambulance district, school district, and sheriff's office of the exact location, date, and time traffic

will be impeded one week in advance of road closure.

5. Place a “Public Safety Announcement” in the local newspapers to inform the public of the road closure: and/or by means deemed appropriate by the County.
6. Supply and maintain all necessary traffic control devices and personnel.
7. Where closures of more than one day are approved, a suitable detour must be provided and be adequately marked and signed to accommodate night traffic.

F: Supplemental Reports: Public Works may require the Applicant to provide supplemental reports or data (e.g., geology, soils, traffic impacts, existing traffic counts) to determine whether or not a Right-of-Way Work Permit may properly be issued. Supplemental reports must be prepared by qualified professionals approved by Public Works. Recommendations included in such reports that are approved by the County Engineer shall be incorporated into the plans and considered a condition and requirement of the Permit.

G: Safety and Public Convenience: The applicant shall at all times conduct his/her work to assure the least possible obstruction and hazard to the traveling public. The safety and convenience of the general public and the residents along the road and the protection of persons and property shall be provided for at all times. Approved traffic control shall be utilized, as outlined by the Applicant’s submittals or otherwise required in the Permit, to assure the safety and convenience of the public.

Depending on the nature of the work, traffic control methods may include traffic control supervisors, flaggers, and approved traffic control devices. The applicant's operations are to conform to the applicable requirements established by the Industrial Commission of Colorado and the Occupational Safety and Health Act (OSHA).

H: Protection of Utilities: During work on the project, the Applicant shall be responsible for the prevention of damage to all public or private utilities or services. This responsibility is not confined to the limits of the work.

I: Protection of Adjacent Property: The applicant is responsible for the prevention of damage to adjacent property, and no person shall excavate or fill on land sufficiently close to the property line to endanger any adjoining public street or any adjacent property.

J: Revegetation: The applicant shall be responsible for complete revegetation of the affected site. Said revegetation shall conform to the adopted Pitkin County Revegetation Guidelines. Unless otherwise approved by a Public Works designee, revegetation of the site shall be accomplished by reseeding with a native grass mix comparable to those described within the Pitkin County Revegetation Guidelines. The applicant may be required to submit to the Public Works designee a signed statement certifying that the seed furnished is from a lot that has been tested by a recognized laboratory for seed testing within six (6) months prior to the date of delivery. Seed, which has become wet, moldy, or otherwise damaged in transit or in storage will not be acceptable. Seed types and amount of pure live seed required per acre shall be in conformance with the surrounding native grasses. The Public Works designee may review the proposed seed mix or its compatibility with the surrounding vegetation and approve it before use.

The applicant shall also be responsible for assuring that the areas to be revegetated will grow and take root to the soils on the disturbed areas. This will include any watering and noxious weed control needed to insure or otherwise promote this growth. To guarantee the revegetation, the developer will be required to provide a bond, letter of credit, or other financial assurance, which will be held for a minimum of two (2) years, as more fully described in Section 1.40.18. The assurance monies will be equal to the costs of revegetation, and will be returned to the applicant when it is determined by the Pitkin County designee that the revegetation of the disturbed areas at the site has been successfully completed.

If within a two-year period from the revegetation effort a successful stand of native grasses at the site has not been accomplished, the County may, at its discretion, retain any or all of the assurance monies necessary in order to attempt revegetation of the grounds. A successful stand of native grasses is defined as being at a 75% germination rate and/or having vegetation cover equal to or greater than the surrounding vegetation cover. The success of the revegetation at the access site will be measured at the end of the summer growing season by the Public Works designee who will approve or reject it between that time and the end of the two-year assurance period.

K: Compliance with Plans and Requirements: All permits issued hereunder shall be deemed as a matter of law to require the applicant (including without limitation all of his or her agents, contractors or employees of any kind) to carry out the proposed work in compliance with all applicable statutory and regulatory requirements, and in full accordance with the plans and specifications approved in connection with the Permit. If the County Engineer determines that actual conditions present on-site do not conform to those stated in the permit or the approved plans or specifications, the County may issue a stop-work order until the applicant obtains approval for a revised plan that conforms to the existing conditions and satisfies all applicable requirements. Modifications of previously-approved Right of Way Work Permits or plans shall not be valid until approved in writing by the County Engineer or designee. Bonds or letters of credit may be required to secure these obligations before a Permit or modification thereto will issue.

L: Warranty Period: Any repaving, restoration, or improvement shall be warranted by the applicant against any and all defects for a period of two (2) years from the completion of such work unless the Permit specifies a longer warranty period.

M: Road Changes: In the event that any change is made to a County road that necessitates the removal or relocation of an installation made by a permit applicant, the relocation or removal of that installation shall be at the Applicant's expense upon written request of the Public Works designee. The relocation or removal shall be completed within 30 days of notification for minor projects or infrastructure. For major utility relocation projects that do require extensive design, securing of contracts, or material orders, the relocation or removal period shall be within 90 days of notification. To avoid the necessity of such changes, the Applicant is encouraged to locate his facility consistent with any existing future plans for the roadway.

N: Inspections: The County Engineer or designee shall have the right to enter the premises to inspect work undertaken pursuant to a Right-of-Way Work Permit at any time. Inspection may include but need not be limited to preparation of surface for fills, retaining walls, drainage devices, and any and all other matters set forth in the Permit or the applicable plans and specifications for the work (including, without limitation, the CDOT *Standard Specifications*) The County Engineer or designee may require soil borings, compaction or other tests at the applicant's expense if an inspection discloses that such tests may be necessary to ensure public health, safety or welfare. Tests shall be taken at locations designated by the County Engineer or designee and shall be performed by an independent testing firm approved by the County. Certified copies of the test data are to be furnished upon request to the County Engineer or designee. The applicant shall inform the County Engineer or designee at least one (1) day in advance of each pre-scheduled inspection regarding the status of the work and its compliance with the applicable Access Permit and all applicable plans and specifications. Final approval of work conducted pursuant to a Right-of-Way Work Permit shall not be given until all work, including installation of all drainage structures and their protective devices, has been satisfactorily completed in accordance with all Permit requirements and all applicable plans and specifications, and all required data or reports have been submitted.

Any work or material that does not conform to County standards will be brought to the attention of the applicant and, if immediate corrections are not made, construction may be stopped.

Failure of the County to notify the applicant of noncompliance with requirements shall not relieve the applicant of its responsibility to comply. Before a bonding commitment is released, certification of satisfactory completion of work from the Public Works designee must be filed. Certification shall be effective only upon the Public Works designee's signature.

O: Construction Standards and Specifications: Unless another section of this RMMP provides otherwise, the most recent edition of the Colorado Department of Transportation's *Standard Specifications for Road and Bridge Construction* shall govern all Right-of-Way Work Permit construction practices. Variations from the CDOT *Standard Specifications* may be granted by the County Engineer when site- specific conditions make application of the *Standard Specifications* impractical or unnecessary. The determination of whether or not a variance is justified shall rest in the sound discretion of the County Engineer. Such a variance shall only be granted through a signed writing executed by the County Engineer.

P: Supervised Inspection Required: All Right-of-Way Work Permit work other than routine maintenance shall be performed under the supervision of a qualified and registered professional civil engineer at the Applicant's expense and shall be designated as "supervised work". For supervised work, it shall be the responsibility of the Applicant's engineer to supervise and coordinate all site inspection and testing during working operations. If the engineer finds that the work is not being done in accordance with either the applicable Permit or accepted construction practices, he/she shall immediately send a written notice of the nonconformity and of the recommended corrective measures to the person in charge of the work and to the County Engineer or designee.

Q: Utility Bridge, Ditch or Culvert Crossing: In general, utilities are not permitted to be attached to bridges and must be placed at least 2 feet below the ditch (roadside or irrigation) or creek flow line and as close to the right-of-way line as conditions permit. The utility must be at least 4 feet below the flow line elevation for a minimum distance of at least 10 feet on either side of the ditch bank or 20 feet beyond the 100- year floodway section as determined by the County. This would generally permit future bridge and channel improvements without the necessity of relocating utilities.

Where utilities are permitted to be attached to bridges due to overriding conditions encountered in the field as determined by the County, such utilities shall be placed so as not to obstruct the waterway of the bridge and/or any attachments such as brackets, hangers, connectors, conducts shall be designed by and signed by a registered professional engineer in the State of Colorado. In such cases, the utility must indemnify the County against any and all liability of any kind arising, or that may arise, out of the placement of the utilities. The utility must also list the County as an additional insured on appropriate policies providing coverages acceptable to the County's Risk Management Department.

R: Financial Security and Bonding: A surety bond in favor of the County in the amount of at least two thousand dollars (\$2000.00), or other amount to be determined by the Public Works designee if deemed necessary, shall be filed before any right-of way work permit is issued. All financial securities will be held for a 2- year period unless otherwise specified by approving Staff. The bond will be conditioned upon:

1. Faithful performance of such work in strict compliance with specifications, rules, regulations, and ordinances of Pitkin County.
2. The restoration and cleanup of any site affected by the construction activities.
3. The maintenance of the site during the warranty period herein provided. For projects over five thousand dollars (\$5000.00), the contractor shall take out a performance bond with the owner, naming Pitkin County as additionally insured for the amount of the project. This may be in lieu of the surety bond. The bond may be waived by the Public Works designee upon applicant's showing of good cause.

S: Liability: Neither the issuance of a permit nor compliance with the provisions hereof or with any conditions imposed in the permit issued hereunder shall relieve the applicant from the full responsibility for any damage whatsoever to other persons or property, nor impose any liability upon any official, appointee, or employee of Pitkin County for damage to persons or property.

T: Final Reports: Upon completion of the permitted work, the following reports or data may be required:

1. A report from the applicant's engineer certifying that all work has been completed in conformance with the approved plans and applicable requirements, accompanied by "as- built" plans of the completed work shall be required
2. Soils and/or geology reports
3. Cross-sections
4. Other reports as required

The release of any bond or security posted by the applicant may be conditioned upon the submittal of the final report.

U: Fee Schedule: (See Appendix A)

9.12.290: OVERSIZED TRANSPORT PERMITS

A: Purpose: In order to ensure the longevity of and reduce overall impacts to County roads, posted vehicle weight and load limits must be strictly obeyed. Permits may be issued on an individual basis to allow certain vehicles to exceed posted load limits based on the criteria in this section 1.41.

Before vehicles or other types of equipment which do not conform to the limitations set by the Colorado Revised Statutes are used upon any County road, or before any vehicle or any type of equipment which exceeds the posted load limit of a County Bridge are permitted to cross the bridge, the operator must obtain a permit from the County Public Works Department. The County Public Works Department will require such provisions as it may deem necessary to protect the road and/or bridge affected by the use of said non-conforming equipment depending on the nature of the vehicle or equipment and the affected infrastructure.

B: Procedure: An Overweight /Oversized Transport Permit must be obtained at least forty eight (48) hours prior to the planned use of any road on the Pitkin County system where the gross weight of the vehicle including load exceeds the posted limitations. The posting may be limited to certain times during the year, such as April - June during the spring thaw. The applicant shall complete a permit application issued by the County Public Works Department, which shall be signed by the Public Works designee, the applicant, and in some instances an affected homeowners association or other property owner, before use of the road or other infrastructure is allowed.

C: General Policy: The Pitkin County Road and Bridge Department shall, pursuant to § 42-4-106, C.R.S., as amended, post a load limit upon County roads and bridges within Pitkin County, Colorado, which will protect said roads and bridges from all overweight/oversized vehicular traffic. Weight limits shall be pursuant to § 42-4-507 and 42-5-508, C.R.S., as amended. These weight limits are generally considered to be (unless revised) 36,000 lbs GVW for two axle vehicles, 54,000 lbs. GVW for three or more axle/single unit vehicles, and 85,000 GVW for any non-interstate haulers.

No person, corporation, association, or other entity of any nature shall operate or cause to be operated any vehicle upon or along any County Right-of-Way within Pitkin County with a total gross weight in excess of the posted weight limits upon said roads or bridges, unless prior permission is granted specifically by the Pitkin County Public Works Department, or other officials designated by the Pitkin County Board of County Commissioners for routes and loads within Pitkin County, Colorado. Permission to exceed applicable limits may be conditioned on

compliance with restrictions or requirements which may be imposed by said Pitkin County Public Works Department.

1. Authorization The County Engineer or designee is hereby authorized and empowered, pursuant to C.R.S. § 43-2-111, as amended, and § 42-4-510, as amended, to issue special permits, in writing, authorizing an applicant to operate or move a vehicle or combination of vehicles of a size or weight of vehicle or load exceeding the maximum specified in this code, upon any County road or highway, as specified in the special permit granted to the applicant. Permits for movement of manufactured homes shall be issued as provided in C.R.S. § 42-4-510.
2. Vehicles Requiring Permits All motor vehicles or combinations of vehicles which exceed the height and/or weight specifications contained in C.R.S. § 42-4-508, 42-4-507 or other applicable law, as amended, which are to be operated or moved on County roads or highways shall be required to apply for and receive a special road permit from the Public Works designee prior to using any County road or bridge.
3. Application Procedure the Public Works designated representative shall have the responsibility for accepting, processing, and granting any and all special road permits.
4. Criteria for Granting Special Road Permits The Public Works designee may grant applications for special road permits provided that the route to be traveled upon by the applicant's vehicle or combinations of vehicles is specified and the time and dates during which said vehicle or combination of vehicles is transiting the County roads are designated in the permit.
5. Proof of Financial Security All applicants for special road permits under this section shall be required, as a condition of being granted a special road permit, to submit proof of liability insurance or a bond running to Pitkin County. Said liability insurance or bond shall be set in an amount deemed adequate to compensate the County for any possible damage to County roads, bridges or structures, upon which said special permitted vehicle or combination of vehicles shall be transiting. In no event shall the applicant be required to provide liability insurance coverage or bond in excess of \$1 million dollars.
6. Bond Requirement As a condition of any Pitkin County road use permit, the Public Works designee may require posting of a bond as security for possible damage to a County road. Currently, the cost of a chip and seal surface is approximately \$50,000 per mile and that of asphalt mat, \$150,000 per mile, and that of gravel road is \$15,000 per mile. However, actual prevailing market costs shall be the basis for determining the amount of the bond and may change due to fluctuation in the market

D: Overweight/Oversized Transport Permits for County Bridges: In order to accommodate commercial activities within Pitkin County, permits may be issued on an individual basis allowing certain vehicles to exceed the posted load limits on certain bridges.

An Overweight/Oversized Transport Permit must be obtained at least forty-eight hours prior to the planned crossing of any bridge on the Pitkin County system where the gross weight of the vehicle including load exceeds the posted limitations of the bridge. The applicant must complete a crossing permit application issued by the County Public Works Department, which must be signed by the Public Works designee and the applicant before the crossing is made. Approved permit must be kept with the transporting vehicle at all times.

E: Liability: Neither the issuance of the permit, nor compliance with the provisions and conditions of the permit, will relieve the applicant from liability to the County for damage caused by the applicant's use of the bridge by overweight/oversized vehicles. Any permit granted pursuant to this section shall require that the applicant indemnify and save harmless Pitkin County, and its officers, agents, appointees, and employees against any claims for damage or loss resulting from the applicant's use of a bridge by overweight vehicles. The applicant shall post

security in an amount adequate to protect against potential damage to the bridge or bridges the applicant proposes to cross.

F: Overweight/Oversized Transport Permit: The Pitkin County "Overweight/Oversized Transport Permit" applications are available at the Public Works Department. Completed applications shall be submitted to the Public Works Department, 76 Service Center Road, Aspen, CO, 81611.

G: Fee Schedule: (See Appendix A)

9.12.300: REVOCABLE RIGHT-OF-WAY PERMIT

A: Purpose: The purpose of these requirements is to establish engineering, inspection and permitting policies by which any structure(s) or temporary construction can be placed by a public or private property owner within a County right of way, road easement, or public roadway. Under no circumstances shall a Revocable Right-of-Way Permit be construed to grant any permanent or irrevocable rights in County property. Such permits grant only a fully-revocable license in a County asset. A Revocable Right-of-Way Permit is not a substitute for a Right-of-Way Work Permit, which will also be required in most cases.

B: Permit Requirements: Any person, business, utility, or agency, including contractors, developers, owners, and governmental agencies (excluding Pitkin County itself and all of its departments, agents, and instrumentalities), who proposes to construct a structure, or to make a substantial renovation to an existing structure within any County Right-of-Way shall first obtain a Revocable Right-of-Way Permit to erect or maintain such structure unless specifically exempted herein. A separate permit will be required for each structure proposed, unless a group or series of structures are proposed at one time.

A permit will not be required, and the applicant will be considered exempt, for the following:

1. Minor or insubstantial maintenance to an existing specific structure. Such work includes, but may not be limited to, cleaning, painting or other resurfacing to an existing structure or structures; repairing or mending an existing structure or structures.
2. Any work within the right-of-way to repair or maintain existing irrigation ditches or impoundments.

C: Plans and Specifications: Site plan and specifications shall be submitted for review by the County Engineer or his/her designee. Upon request by the County, these plans and specifications shall be prepared by a registered professional engineer duly licensed by the State of Colorado. The plans and specifications shall, at a minimum, show the following:

1. Site vicinity map and site plan accurately detailing the location of the work
2. Construction plans and specifications showing structure(s) plan and profile
3. Schedule of proposed work
4. Drainage and erosion control plan addressing proposed work
5. Construction Management Plan (if work is in conjunction with a development permit)
6. Revegetation Plan
7. Map or letters from utility companies detailing utility placement (if applicable)
8. Signing and striping plans (if applicable)
9. Traffic Control Plan and applicable methods of handling traffic (if applicable)
10. Asphalt patches shall conform to standards set forth in the Appendix A
11. Subdivision, zoning, or development plan
12. Property and easement map
13. Parcel and/or ownership maps

D: Hazardous or Harmful Conditions: Whenever Pitkin County determines that an existing structure or structures, whether previously-permitted or not, becomes a hazard to public safety or interferes with the County's maintenance or structure plans for the right-of-way on which it is placed, the owner of the structure or of the property which the structure benefits, upon receipt of

written notice from the County Engineer or his designee shall, within the period specified therein, repair or eliminate said structure(s) so as to eliminate the hazard or impedence posed by the structure and be in conformance with the requirements contained herein.

E: Enforcement: Revocable Right-of-Way Permits grant only a fully-revocable right in County property. Should the applicant, the owner of a structure, or the owner of a property benefited by the structure fail to adhere to all Permit requirements, the County shall revoke the Permit and the responsible person or entity shall remove the structure at issue immediately. The County may also require removal of a structure for the County's convenience, and in its sole discretion, at any time.

Every Revocable Right-of-Way Permit shall include a provision that the applicant shall indemnify the County and pay any and all of the County's costs and attorney's fees should judicial action be necessary to obtain removal of a structure which the County directs be removed or altered.

F: Supplemental Reports: Supplemental reports and data (i.e., geology, soils, water, drainage, wildlife, etc.) may be required to support an application for a Revocable Right-of-Way Permit in the discretion of the Public Works Department. Supplemental reports shall be prepared by qualified professionals in the field. Recommendations included within such reports shall be incorporated into and made a condition of the Permit at the discretion of the County Engineer or designee.

G: Liability: Neither the issuance of a permit nor compliance with the provisions hereof or with any conditions imposed in the permit issued hereunder shall relieve the applicant from the full responsibility for any damage whatsoever to other persons or property, nor impose any liability upon any official, appointee, or employee of Pitkin County for damage to persons or property.

H: Revocable Right-Of-Way Permit: The Pitkin County "Revocable Right-of-Way Permit" applications are available at the Public Works Department and online at www.pitkincounty.com. Completed applications shall be submitted to the Public Works Department, 76 Service Center Road, Aspen, CO, 81611.

I: Fee Schedule: (See Appendix A)

9.12.310: REVOCABLE RIGHT-OF-WAY PARKING PERMIT

A: Purpose: Roadside parking is PROHIBITED along all County roads and within any County road right-of-way except as may be authorized by a Revocable Right-of-Way Parking Permit, unless a parking area has been established and designated by the County Engineer. Only a Revocable Right-of-Way Parking Permit may authorize temporary parking. In an attempt to satisfy needs for the traveling public, public parking areas may be determined and improved on an as-needed basis, provided that adequate right-of-way exists. Parking areas may also be provided within designated "nodes". The County is under no obligation to approve parking within the right of way.

B: Permit Requirements: Any person, business, utility, or agency, including contractors, developers, owners, and governmental agencies (excluding the County itself and all of its departments, agents, and instrumentalities), who proposes to park within the County Right-of-Way shall obtain a permit.

C: Residential Construction Parking Permits: Residential construction managers may apply for a Right-of-Way Parking Permit for spots in a County ROW. Such parking spots may not exceed the limits of the property boundaries of the construction site adjacent to a county road. The Pitkin County Public Works Staff shall approve parking spots based on safety, the Road and Bridge Department's operation needs and emergency vehicle response as needed for emergencies and as follows:

1. The number of vehicles approved by the public works staff will determine the number of parking permits. The public works staff will issue parking tags and the construction manager may use the tags according to the day-to-day construction activities at the site. Parking tags shall be hung from the construction vehicle’s rearview mirror such that they are easily identifiable by county staff and other county officials.
2. Red Tags (construction work stoppages) shall be issued for any construction site that fails to comply with obtaining a County ROW permit and which violates this section by parking vehicles in a County ROW without a current parking tag.
3. County ROW parking permits may be issued beginning no earlier than April 1st of each calendar year and shall expire on or around November 15th of the same year; depending upon current weather conditions. The public works staff will determine the specific beginning and expiration dates and notify the construction manager of such determination.

D: **Plans and Specifications:** Plans and specifications shall be submitted for review by the County Engineer or his/her designee. If determined by the County to be necessary, these plans and specifications shall be prepared by a qualified professional. In all cases that they are requested, the plans and specifications shall show the following:

1. Site vicinity map and site plan accurately detailing the location of parking
2. Schedule of proposed work
3. Construction Management Plan (if work is in conjunction with a development permit)
4. Traffic Control Plan and applicable methods of handling traffic (if applicable)

E: **Enforcement:** Enforcement requirements contained herein may be enforced by an authorized designee of the County, or by injunctions resulting in work stoppage by the District Court in and for the County of Pitkin, State of Colorado, pursuant to law, or suit may be commenced by the County Attorney on behalf of the Board of County Commissioners for damages or hazardous or harmful conditions due to non-compliance.

F: **Liability:** Neither the issuance of a permit nor compliance with the provisions hereof or with any conditions imposed in the permit issued hereunder shall relieve the applicant from the full responsibility for any damage whatsoever to other persons or property, nor impose any liability upon any official, appointee, or employee of Pitkin County for damage to persons or property.

G: **Revocable Right-Of-Way Parking Permit:** The Pitkin County "Revocable Right-of-Way Parking Permit" applications are available at the Public Works Department and online at www.pitkincounty.com. Completed applications shall be submitted to the Public Works Department, 76 Service Center Road, Aspen, CO, 81611.

H: **Permit Fee Schedule:**

Access Permit	\$ 750.00
Oversized Transport Permits	\$ 15.00
Annual Oversized	\$ 250.00
Right-of-Way Work Permit	\$ 750.00
Revocable Right-of-Way Permit	\$ 750.00
Revocable Right-of-Way Parking Permit	
• From April 1 through November 15 th	\$ 6000.00
• From April 1 thru August 15	\$ 4000.00
• After August 15 th	\$ 2000.00
	\$ 1000.00

• 30 Days	

9.12.320: APPEAL FROM DENIAL OF PERMIT

Whenever a permit is required by this Road Maintenance and Management Plan, and the Public Works Department denies the permit, the applicant for the permit may, within fifteen (15) days from the date of such denial, request in writing to the appropriate officer who denied the permit, an appeal of the denial to the Board of County Commissioners. The officer receiving the written request for an appeal shall, within fifteen (15) days of receiving the request, submit to the Board of County Commissioners the written request for the appeal, and any administrative record consisting of documents considered by the officer in his denial, including the application for the permit and all supporting documents. The Board of County Commissioners will then decide, based upon a review of the record, whether to accept or reject the decision of the officer, within thirty (30) working days of receiving the transcript/decision. The Board of County Commissioners may, in its discretion, request additional or other information from the applicant, the County designee who issued the denial, or other County designee. The decision rendered by the Board of County Commissioners is the final decision of the County. Decisions made by the Board of County Commissioners regarding rights to use County property (except for uses specifically protected by a constitutional or statutory provision) are not subject to judicial review.

9.12.330: ENFORCEMENT

The Pitkin County Road Maintenance and Management Plan shall be enforced in accordance with the provisions of Colorado law and as provided in this section.

A: Violations:

1. Unlawful Activity

- a. In addition to the provisions set forth below, it shall be unlawful and a violation to do or engage in any act or omission that is prohibited or declared to be unlawful by the RMMP.
- b. It shall be unlawful to engage in any activity for which a permit is required under this RMMP without first obtaining such permit, or to engage in activity in violation of the terms of any permit issued under this RMMP. No landowner or lessee shall knowingly permit activity upon his/her property in violation of this section.
- c. It shall be unlawful for any person to engage in road maintenance of any County road except by written agreement with Pitkin County.
- d. It is unlawful to park on any County road or right-of-way without a permit, unless that portion of the right-of-way has been signed by Pitkin County for parking.
- e. It shall be unlawful for any person to deposit, plow, push or otherwise place snow plowed or shoveled from a private driveway, road, sidewalk, or any other source, onto any County road.
- f. It shall be unlawful to violate any other provision of this Road Maintenance and Management Plan that regulates private use of, or impact on, any County Asset.
- g. It shall be unlawful to camp in or occupy overnight any public street, public road, or public right-of-way, including State streets, roads, and

right-of-ways, in unincorporated Pitkin County and vehicles or motor vehicles shall not be used for camping or overnight occupancy of public roads or public right-of-ways.

2. Violations, Penalty

- a. Whenever in any section of this Road Maintenance and Management Plan the doing of any act is required, prohibited, or declared to be unlawful, each violation of any such provision shall be a Civil Infraction with a maximum fine not to exceed \$1,000 and/or imprisonment for a period not to exceed 90 days or the maximum allowable by State law, as amended. Provided, however, that traffic infractions shall be addressed as provided in Section 9.04 above and State law. The County Engineer or designee, the Pitkin County Code Enforcement Officer, or any Law Enforcement officer shall be authorized to serve either a Summons and Complaint or Penalty Assessment, as specified in this Section on any person who violates the provisions of this Road Maintenance and Management Plan.
 - b. Specific to camping or overnight occupancy of public road or public right-of-ways in Pitkin County, Colorado, violation shall be a civil infraction, punishable by a fine of two hundred and fifty dollars (\$250.00) for the first offense, five hundred dollars (\$500.00) for the second offense, and one thousand dollars (\$1,000.00) for the third and each subsequent offense thereafter. Each day a vehicle is used for camping or overnight occupancy or an individual is camping in or occupying a public right-of-way shall constitute a separate offense, regardless of whether the individual or vehicle is moved from location to location or the duration of any absence.
 - c. In addition, to the penalty assessment set forth above, in the event that a vehicle is used or is being used for camping or overnight occupancy of a public road or public right-of-way in unincorporated Pitkin County, the Pitkin County Sheriff's Office may and is hereby authorized to remove the vehicle from the road or right-of-way and arrange to have it towed, at the owners expense, to the Pitkin County Sheriff's designated impound location, if the individual or vehicle has been the subject of three previous violations of Section 9.12.330(g) and the vehicle has not been removed from the public road, street, or right-of-way or continues to occupy the same. Each day a vehicle is used for camping or overnight occupancy or an individual is camping in or occupying a public right-of-way shall constitute a separate offense, regardless of whether the individual or vehicle is moved from location to location or the duration of any absence.
3. Civil Enforcement. In the event of any act or omission that violates any section of this RMMP, the County Attorney, in addition to other remedies provided by law or specified herein, may institute an injunction, mandamus, abatement, or other appropriate civil action or proceeding to prevent, enjoin, or abate any unlawful activity, or to remove any improvements or construction resulting from such unlawful activity. In the event that such unlawful activity has damaged any county property, the violator shall be liable for any damage to county property resulting from any such unlawful activity, including, but not limited to, compensation for Staff time and for use of county equipment or contracted services to repair such damage. Any civil action or proceeding may include a claim to recover all such money damages in addition to any and all claims for injunctive or other equitable relief.

4. **Withdrawing or Withholding Permits** In the event that the Public Works Director or designee, Code Enforcement Officer, or Open Space and Trails Director or designee has personal knowledge of any violation of this RMMP, any Public-Works issued permit may be withdrawn after the violator is provided notice and an opportunity for hearing before the Board of County Commissioners. If the violation involves activity under a Pitkin County Community Development building permit, the building permit may also be withdrawn after consultation with Community Development Staff and after the violator is provided notice and an opportunity for hearing before the Board of County Commissioners. No further permits or approvals from the County shall be issued for any property generating a violation until the violation is brought into compliance with the standards of this RMMP.
5. **Vehicle Removal.** Any vehicle blocking traffic or impeding road maintenance on a County road or right of way may be moved pursuant to § 42-4-1803, C.R.S. The procedure for removing such vehicles shall be as follows:
 - a. Public Works Staff shall provide the vehicle's description, license plate, location and circumstance to the Pitkin County Sheriff's Office and request that the Sheriff's Office have the vehicle removed.
 - b. If the Pitkin County Sheriff's Office informs Public Works that it is unavailable to have a vehicle removed in a reasonable amount of time, Public Works Staff may request approval from the Sheriff's Office for Public Works Staff to remove the vehicle.
 - c. If a vehicle is to be removed by Public Works Staff with Sheriff's Office approval, Public Works shall call dispatch and request a tow. Public Works-initiated tows shall be taken to the Sheriff's impound lot and Public Works Staff shall within a reasonable time notify the Sheriff's Office of the details of the tow, including vehicle description, location and license plate number.
 - d. If a vehicle can be simply moved to a nearby location rather than to the impound lot to resolve the problem posed by the vehicle, Public Works Staff shall have discretion to make that decision after following the same procedures set forth above. Nothing herein shall obligate Public Works, the Sheriff, or any other entity to relocate a vehicle rather than removing it.
 - e. When Public Works initiates a vehicle removal, Staff shall when practicable first make a reasonable effort to inform the vehicle's owner of the impending vehicle removal. The circumstances—including without limitation the location of the vehicle, the level of service of the road or asset in question, the danger to the public, and the disruption to maintenance and provision of other public services—shall inform a sound exercise of discretion as to what a reasonable effort is and how long Public Works must wait before initiating the removal of a vehicle. In some circumstances it may be necessary to immediately remove a vehicle without first contacting the owner.
 - f. In circumstances where a vehicle is approved by the Sheriff's Office to be towed to the Sheriff's impound lot, the Sheriff's Office is responsible for accomplishing the necessary logistics such as vehicle logs and vehicle release to owners. Public Works Staff shall assist as requested by the Sheriff's Office.

9.12.340: DEFINITIONS

Access - A means of ingress and egress from a building site or parcel of land.

Address - The numerical portion of the street address, as assigned.

Addressable Structure - Any structure that has been deemed addressable by Pitkin County as described in the Address Ordinance. Generally only buildings normally occupied by human beings will be assigned addresses; provided, however, that other sites or structures, (barns, outbuildings, service areas) may be addressed where it may be helpful in emergencies. Such sites may be assigned addresses at the discretion of Pitkin County.

Apartment - Building that consist of three (3) units or more for rent.

Arterial Road - A high-capacity urban road.

Avenue - A road that runs generally east to west, normally allowed only in municipal (city) jurisdictions (AV or AVE)

BOCC - Pitkin County Board of County Commissioners.

Building - A temporary or permanent structure having a roof supported by columns or walls and which can be used for the shelter, housing, or enclosure of persons, animals, or goods.

Building Site - An area of land or property where development is undertaken.

Boulevard - An unusually wide street with a central dividing median (BL or BLVD).

CAD - Computer Aided Dispatch. Computer software used by public safety dispatch centers.

Century System - A nationally recognized uniform system of measurement.

Circle - A short road that returns to itself (CR or CIR).

Collector Road - A low to moderate-capacity road, which serves to move traffic from local [streets](#) to [arterial roads](#).

Condominium - The ownership of single units in a structure with common areas and facilities.

Condominium Unit - An enclosed space consisting of one or more rooms occupying all or part of a floor in a building or one or more floors or stories regardless of whether it is designed for residence, office, the operation of any industry or business, or any other type of independent use and shall include such accessory spaces and areas as may be described in the declaration, such as garage space, storage space, balcony, terrace or patio.

Consolidated Road Data - A software based application that contains street information, previous names, and alias street data that can be used to feed GIS applications and other systems.

Court - A dead end right-of-way often ending as a cul-de-sac (CT).

Directional - As pertaining to North, South, East, and West, and will precede street name. The Planning staff will control the use of compass directions.

Drive - A curving secondary road (DR).

Duplex - Two units, including modular homes, placed one on top of another or attached side by side and sharing one or more common walls.

Fire Alarm System - A system or portion of a combination system that consists of components and circuits arranged to monitor and annunciate the status of fire alarm or supervisory signal-initiating devices and to initiate the appropriate response to those signals.

Fire Department Access Road - The road or other means developed to allow access and operational setup for fire-fighting and rescue apparatus.

Fire Protection System - Any fire alarm device or system or fire-extinguishing device or system, or combination thereof that is designed and installed for detecting, controlling, or extinguishing a fire or otherwise alerting occupants, or the fire department, or both, that a fire has occurred.

Highway - A designated State or Federal roadway (HY or HWY).

Interstate - A Federal thoroughfare system designed for national defense and population evacuation (I-#).

Lane - A short, low traffic, road that branches off another road and ends or connects to another secondary road (LN).

Loop - A short road that starts and returns to the same road (LP).

Lot - A parcel of land or any combination of several parcels of land occupied or intended to be occupied by a principle use or structure, together with any accessory structures or uses and such access ways, parking areas, yards, and open space required in these standards.

Mailing Address - Used by the U S Postal Service for the purpose of delivery of the U S Mail. Mailing address may or may not be identical to a site-specific address.

Manual on Uniform Traffic Control Devices - or MUTCD defines the standards used by road managers nationwide to install and maintain traffic control devices on all public streets, highways, bikeways, and private roads open to public traffic.

Mobile Home - A moveable or transportable structure, constructed to be transported on its own chassis and including one or more components that can be retracted for transporting the unit.

Mobile Home Park - Any site or parcel of land under single ownership where land or units are rented, and community utilities provide for the occupancy of mobile homes.

MSAG - Master Street Address Guide. A proprietary database of roads served by emergency services of Pitkin County Communications.

Official Street Name - Street name approved and recognized by Pitkin County.

Parkway - Typically a four (4) lane or more roadway; allowed in municipal jurisdictions only, (PK or PKWY).

PCREDC - Pitkin County Regional Emergency Dispatch Center

Place - A road name suffix, allowed in residential subdivisions only (PL).

Private Road – A road that is not otherwise a public road.

PSAP - Public Safety Answering Point. Public safety call receiving and emergency services dispatch center.

Public Road - A roadway that constitutes a public right-of-way or is located on a public right-of-way.

Public Safety Personnel - Any person functioning on behalf of a Law Enforcement, Fire, EMS, Mountain Rescue, Local Government, or Utility Agency.

Radio/Communications Service - Includes any radio communications, transmissions, dispatching or future 911 communications that may involve police, emergency, fire, or rescue operations, but not limited to these aforesaid operations.

Road - A suitable name suffix indicating a well-traveled secondary roadway often connecting with a U S or Colorado primary highway (RD).

Street - A suitable suffix indicating a well-traveled roadway, allowed only in municipal jurisdictions (ST).

Street Address - A unique identifier for each addressable structure within the County. The minimum adequate address consists of a numeric indicator and approved street name and suffix.

Structure - Any building, whether residential, commercial, industrial, or institutional in nature and use.

Thoroughfare - A general all-inclusive term for; roads, public or private; street, drive, cart way, easement, right-of-way, or any other word or words that means a way of access.

Townhome - One of a row of houses joined by common sidewalls.

Trail - An acceptable suffix for roadway names (TR).

Unit Designator - The portion of the Street Address used to distinguish individual units within the same structure.

Waterfront Property - Parcels of land that are accessible by waterborne law enforcement.

Way - An acceptable suffix for roadway names (WY).

Vanity Names - Any thoroughfare name that contains the whole name or that designates a specific person.

*Added to Title 9 [Ord. 026-2018](#), 05-31-2018 § 9.12.010 amended [Ord. 041.19](#), 12-04-19
Definitions Amended (in part) [Ord. 024-2022](#), 05-22-2022; Code Restated [Ord. 006-2023](#), 08-08-2023, Amended (in part) [Ord. 006-A](#), 02-08-2023; Amended (in part) [Ord. 033-2023](#), 12-15-2023; Title 9 repealed and reenacted [Ord. 002-2026](#), 01-14-2026*